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CONSOLIDATED PROTECTED DISCLOSURE FULL PARLIAMENTARY & JUDICIAL EVIDENCE PORTFOLIO

Including Complete Parliamentary Submission Packet — May 2026

IN THE MATTER OF
WILBUR WILLIAM MATTHEE

v

**AFROCENTRIC INVESTMENT CORPORATION / MEDSCHEME
HOLDINGS (PTY) LTD & OTHERS**

Portfolio Version:	Final — May 2026 (Parliamentary Submission Edition)
Complainant:	Wilbur William Matthee — RN BTech PGDip Health Services Management (NQF 8)
Prepared By:	EthicHawks Forensic Governance & Compliance Consultancy
Active Cases:	2026-066952 2026-077546 2026-086906 WECT23564-25 WECT24486-25 B-BBEE 5/02/2026 CAS 705/3/2026
Submitted To:	Parliament of the Republic of South Africa — National Assembly

CONFIDENTIAL — PROTECTED BY LEGAL PRIVILEGE — PROTECTED DISCLOSURES ACT 26 OF 2000

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PART A — EXECUTIVE SUMMARY & KEY FINDINGS

This Consolidated Evidence Portfolio is submitted as a formal protected disclosure in terms of the Protected Disclosures Act 26 of 2000 (as amended). It documents a sustained, systemic pattern of governance failure, disability discrimination, retaliation, and institutional obstruction perpetrated against a formally disabled whistleblower — Specialist Registered Nurse (NQF Level 8) — by AfroCentric Investment Corporation, its subsidiary Medscheme Holdings (Pty) Ltd, and a cascade of regulatory bodies that have failed to discharge their statutory mandates. It is intended for Parliament, all judicial forums, and the public record.

A.1 The Whistleblower

Wilbur William Matthee: Specialist Registered Nurse (NQF Level 8), 18 years clinical governance experience, BTech General Nursing, PGDip Health Services Management (CPUT, 90% Distinction). Employed by Medscheme Holdings from 2 May 2024 to 12 December 2025 (constructive dismissal). Founder of EthicHawks Forensic Governance & Compliance Consultancy. Self-represented across nine concurrent regulatory proceedings. No legal aid.

A.2 The Protected Disclosures

- Gexus-DMS systemic integration gap: Structural design flaw causing false non-adherence letters to vulnerable elderly GEMS beneficiaries. Root Cause Analysis confirms architectural defect affecting all 1.9 million GEMS members transitioning between benefit categories. Priority 1 patient safety risk. Board received full report and suppressed it.
- B-BBEE fronting: Recruited as 'Specialist: Care Manager' (NQF Level 8); contracted as 'Care Coordinator' — title suppression for B-BBEE scorecard benefit without corresponding economic entitlement. Section 1(c) B-BBEE Act 53 of 2003.
- UIF non-compliance: June 2025 contributions deducted but not remitted — criminal offence under Section 56, UIF Contributions Act 4 of 2002. SAPS CAS 705/3/2026 active.
- Forensic payroll misrepresentation: SARS/UIF declared gross R27,725.66 against payslip gross R21,777.04 for July 2025 — R5,948.62 discrepancy in identical pay cycle as the unlawful deduction. Potential statutory misrepresentation to government authorities.
- Disability discrimination and BCEA breach: 40.47% salary deduction (R14,811.77) without consent, without consultation, while employer held specialist psychiatric letter confirming vulnerability.
- Gender identity harassment: 'Wilma' public misgendering followed by whitewash investigation and no structural remedy.

A.3 Ten Key Findings

FINDING 1

Continuous Disability Discrimination: Respondent held formal psychiatric diagnosis (severe depression and PTSD — Dr Jacques Malan, FCPSYCH(SA)) prior to imposing the unlawful salary deduction. Reasonable accommodation was refused. The disability was subsequently weaponised in sworn CCMA proceedings as a 'cynical excuse.'

FINDING 2

Unlawful Salary Deduction: 40.47% (R14,811.77) deducted July 2025 without consultation, without written consent, exceeding the 25% statutory cap under

	BCEA Section 34(2). Employer acknowledged the cap in writing on 24 July 2025 while defending the deduction — establishing wilful non-compliance.
FINDING 3	Forensic Payroll Misrepresentation: SARS/UIF declared salary (R27,725.66) does not correspond to payslip gross (R21,777.04) for July 2025 — a R5,948.62 discrepancy. The deduction was cross-structured across a financial year boundary (leave event May-June 2025; deduction applied July 2025 — new financial year). Potential statutory misrepresentation to government authorities.
FINDING 4	Gender Identity Discrimination ('Wilma'): Public misgendering in team communication 23 September 2025, followed by sham investigation dismissing it as a 'typo,' and complainant left in the hostile reporting line. Retaliatory double unpaid leave loaded the same day as the formal complaint. EEA Section 6(1).
FINDING 5	B-BBEE Fronting (Prima Facie): Recruited as 'Specialist: Care Manager'; contracted as 'Care Coordinator' (Grade B4M1); performed management functions; Certificate of Service suppresses NQF Level 8 title. HR written admission (19 January 2026): naming convention 'not applied to your department.' All four Section 1(c) elements established on documentary evidence.
FINDING 6	Gexus-DMS Integration Gap — 1.9M GEMS Beneficiaries at Risk: Structural design flaw generates false non-adherence letters. RCA confirms architectural, recurring, unremediated defect. Board received Priority 1 Material Risk Report 9 December 2025 and suppressed it. Primary ground in Section 162 Director Delinquency Application (Case 2026-066952).
FINDING 7	Automatically Unfair Constructive Dismissal: Resignation 12 December 2025 caused by objectively intolerable conditions. Employer's opposing CCMA affidavit — personal attacks under oath seeking costs against a destitute complainant — constituted the final act of intolerability. LRA Sections 186(1)(e) and 187(1)(f). High Court interim gag order (Case 2026-086906) constitutes further evidence of institutional suppression.
FINDING 8	Regulatory Cascade Failure — 11 Institutions, 9 Deflections: CCMA Commissioner pre-judged PDA claim before hearing; DEL declined BCEA jurisdiction; SAPS initially refused criminal docket (reversed by Brigadier Naidoo); CMS declined then re-engaged; JSE declined; SAHRC referred back; B-BBEE Commission ignored fronting evidence and refused Section 13K subpoena powers; SANC deregistered complainant with no response to misconduct complaint. Only NDOH/Minister of Health engaged substantively.
FINDING 9	Humanitarian Crisis — Induced Destitution: Four months rental arrears; confirmed eviction; no running water since January 2026; possessions seized by loan sharks; SANC deregistration (cannot practise nursing 2026); retirement fund depleted (R48,400); severe depression and PTSD (Dr Jacques Malan, FCPSYCH(SA)); self-represented nine concurrent proceedings, no legal aid. Causal chain from unlawful deduction is direct and unbroken.

FINDING 10

Access to Justice Obstruction — Section 34 Constitutional Violation: OCJ portal rejection 'good day you put date'; CCMA mailbox full three occasions; Registrar failed to provide court audio recording; Labour Court call centre unreachable eight days; SAPS Delft unlawfully refused criminal case (audio-recorded). Systemic violation of Section 34 right of access to courts for self-represented, disabled, destitute applicant.

PART B — LEGAL FRAMEWORK

This matter engages the following legislative and constitutional frameworks. Each provision has been specifically breached by the Respondents or the responsible regulatory bodies.

LEGISLATION	PROVISION	BREACH IDENTIFIED
Protected Disclosures Act 26 of 2000	Sections 1,3,6,7,8,9,9(2)(a)	Retaliation; occupational detriment; constructive dismissal; PDA overrides POPIA confidentiality
Labour Relations Act 66 of 1995	Sections 185,186(1)(e),187(1)(f)(h),194(3)	Automatically unfair constructive dismissal; protected disclosure retaliation
Employment Equity Act 55 of 1998	Sections 6(1),6(3),10,11,60	Gender identity & disability discrimination; failure to eliminate harassment
BCEA Act 75 of 1997	Sections 34,34(2),42,77A	Unlawful deduction >25% cap; no consent; Certificate misrepresentation; civil claim filed
Companies Act 71 of 2008	Sections 76,77,162(5)(c)	Director delinquency; breach of fiduciary duty; SENS non-disclosure
B-BBEE Act 53 of 2003	Sections 1(c),13J,13J(5),13K	Fronting practice; false documentation; Commission failure to use subpoena powers
Medical Schemes Act 131 of 1998	Sections 1,7,44,47,58	Administrator maladministration; beneficiary risk; accreditation breach; forensic inspection triggered
UIF Contributions Act 4 of 2002	Section 56 (criminal)	Non-remittance June 2025 — SAPS CAS 705/3/2026 active
Financial Sector Regulation Act 9 of 2017	Market conduct provisions	Governance failure; whistleblower retaliation by regulated entity
Constitution Act 108 of 1996	Sections 9,10,14,23,34,56; s7(2)	Equality; dignity; privacy; labour rights; access to courts; parliamentary access; Biowatch principle
King IV (JSE Incorporated)	Principles 2,3,14,16	Board failure; ethics; remuneration governance; stakeholder non-responsiveness
Nursing Act 33 of 2005	Sections 56(1)(a),(c),(d); Rules 15(1)(c),(h),(k),(m)	Professional misconduct (Jones & Mashele) — SANC complaint active; NDOH engaged
POPIA Act 4 of 2013	Sections 19-22,26	Cited by Respondent for gag order — overridden by PDA Section 9(2)(a)
Pharmacy Act 53 of 1974	Section 49	Unprofessional conduct — Lisa Mari — SAPC complaint active
Copyright Act 98 of 1978	Sections 6,20,21,23	IP misappropriation of CPD programme — in active proceedings

PART C — MASTER CHRONOLOGICAL RECORD (January 2024 – May 2026)

Condensed from the EthicHawks Master Forensic Governance & Regulatory Register (148 entries, 03 April 2026). Full register is Annexure AA / Exhibit EX-AA, incorporated by reference.

Phase 1 — Recruitment & Bait-and-Switch (January – May 2024)

- 11 January 2024: Recruitment initiated for 'Specialist: Care Manager' role — three interview invitations issued.
- 29 January 2024: Assessment completed for Specialist position.
- 2 April 2024: BAIT-AND-SWITCH — offer issued for 'Care Coordinator' (Grade B4M1) despite Specialist recruitment. Contract signed 9 April 2024 by Barbara Johnson. Foundational B-BBEE fronting act.
- 2 May 2024: Employment commences. Specialist-level functions performed throughout entire tenure.

Phase 2 — Employment & Deterioration (May 2024 – November 2025)

- June – December 2024: Early psychosocial risk factors documented. Derogatory remarks. Patterns of dismissiveness and exclusion.
- 6 March 2025: FIRST DOCUMENTED THREAT — Jones: 'This is the end of you.' Contemporaneously recorded.
- 18 March 2025: Psychiatric admission — Akeso Stepping Stones (severe depression, PTSD — Dr Jacques Malan, FCPSYCH(SA)).
- 16 May 2025: Dr Malan psychiatric letter formally delivered to Senior Manager Mapule Mashele. Employer on written notice of disability before July deduction.
- 23 July 2025: UNLAWFUL DEDUCTION — 40.47% (R14,811.77) without consultation, without consent, exceeding BCEA Section 34(2) 25% cap. Net pay: R15,679.29.
- 24 July 2025: Jones acknowledges 25% statutory cap in writing; simultaneously defends 40.47% deduction ('This is for disability'). Critical admission of wilful non-compliance.
- 25 July 2025: Matthee drafts management roster for 13+ staff — direct evidence of Specialist-level functions contradicting 'Care Coordinator' designation.
- 23 September 2025: 'WILMA' INCIDENT — Jones publicly misgenders complainant in Teams with 'NO FILTERING' in red, immediately after complainant proposed filtering strategy.
- 25 September 2025: Formal 11-page discrimination complaint filed. HR promises removal from hostile reporting line; promise not fulfilled.
- 29 September 2025: RETALIATORY DOUBLE UNPAID LEAVE — loaded by Jones on identical day as formal complaint. Reversed by Mashele. Direct documented retaliation.
- 1 October 2025: Investigation whitewash — 'Wilma' dismissed as 'typo.' Complainant left in Jones's reporting line.
- 23 October 2025: PROTECTED DISCLOSURE (Patient Safety) — Gexus-DMS integration gap formally disclosed. Complainant refuses clinically incorrect instruction re vulnerable 75-year-old patient. Jones labels refusal 'insubordination.'
- 31 October 2025: SMOKING GUN — Jones, recorded: 'You made a case of harassment against me, so I can make a case of harassment against you.' Causal nexus for PDA retaliation confirmed on audio recording.

- 2 November 2025: Formal 3-page grievance. 30+ day institutional silence begins.
- 4 December 2025: Final executive escalation (32 attachments). CRO Monwabisi Kula responds with 'festive break' delay.
- 9 December 2025: Priority 1 Material Risk Report submitted to Board (38 attachments): Ethics Committee, Risk Committee, Lead Independent Director, Company Secretary.
- 10 December 2025: Employer files retaliatory CCMA affidavit — 'cynical excuse'; seeks costs. Bad faith litigation under oath by Xolile Vincent Manyati.
- 12 December 2025: RESIGNATION — constructive dismissal effective. LRA Section 186(1)(e).

Phase 3 — Regulatory Escalation (December 2025 – March 2026)

- 23 December 2025: Full regulatory bundle commissioned and submitted to FSCA, CMS, JSE, DEL, B-BBEE Commission, SAHRC, SAPS/NPA.
- 9 January 2026: CCMA conciliation — Commissioner Nthabiseng pre-judges PDA claim before hearing. Certificates of Non-Resolution issued for WECT23564-25 and WECT24486-25.
- 10 January 2026: Formal CCMA bias complaint filed. Provincial Commissioner investigation — no findings — described in formal record as 'cover-up by institutional misdirection.'
- 19 January 2026: Certificate of Service disputed. HR written admission (Cheryl-Dawn Modern): naming convention 'not applied to your department.'
- 4 February 2026: CMS declines jurisdiction — directed to HPCSA.
- 10 February 2026: SANC complaint filed (Jones & Mashele). SAHRC directs complainant to CCMA/Labour Court. DEL allocates integrated inspection.
- 23 February 2026: SAPS Delft unlawfully refuses criminal case. Recorded. Formal complaint to National Police Commissioner.
- 13 March 2026: SAHRC comprehensive update — forensic payroll discrepancy, CCMA bias, Labour Court portal obstruction, imminent eviction documented on formal record.

Phase 4 — Litigation & Active Proceedings (March – May 2026)

- 17 March 2026: Section 162 Director Delinquency application served on Board (Fernandes, Munisi, Le Roux, Van Wyk, Mpumlwana). SENS obligation noted.
- 19 March 2026: SAPS criminal case registered — CAS 705/3/2026 — following Brigadier Naidoo's intervention. Transferred to Woodstock SAPS.
- 25 March 2026: High Court urgent hearing (Case 2026-066952) — struck from roll; Scale C costs order; unauthorised third party incident. Rule 42 rescission grounds and Biowatch costs challenge identified.
- 2 April 2026: BCEA Section 77A claim filed — Case 2026-077546. CMS formal follow-up: Gexus-DMS reframed as administrator maladministration under MSA Sections 1,7,44,47,58.
- 13 April 2026: Formal protected disclosure submitted to GEMS Board of Trustees.
- 16 April 2026: Rule nisi / interim gag order — High Court Case 2026-086906 (AfroCentric v Matthee). Respondent seeks to suppress protected disclosures. PDA Section 9(2)(a) override engaged.
- 28 May 2026: Consolidated Supplementary Answering Affidavit filed in Case 2026-086906. Perjury schedule (Table 1) documents false statements by deponents.

- 31 May 2026: This portfolio finalised and submitted to Parliament.

PART D — PROTECTED DISCLOSURE CHAIN

Each disclosure qualifies as a protected disclosure under Section 1 of the Protected Disclosures Act 26 of 2000. Each was followed by documented occupational detriment. The recorded retaliatory admission of 31 October 2025 establishes the causal nexus beyond reasonable dispute.

DATE	DISCLOSURE	RECIPIENT	RETALIATORY RESPONSE
May 2025	1st formal PDA: disability, BCEA breach, victimisation, psychosocial risk	Sr Manager Mashele	Ignored. July 2025 unlawful deduction follows.
Jul 2025	Payroll: 40.47% deduction exceeds BCEA Section 34(2) 25% cap	HR / Payroll	Deduction maintained. Financial destitution ensues.
Sep 2025	Gender identity discrimination (11-page formal complaint)	HR / Union	Whitewash. Left in hostile reporting line. Retaliatory leave same day.
Oct 2025	Patient safety: Gexus-DMS gap. Refuses clinically incorrect instruction.	Jones / Management	Insubordination charge. Recorded retaliatory admission.
Nov 2025	Formal grievance: malicious intent, gaslighting, retaliation	HR / Union	30+ days institutional silence.
Dec 2025	Executive escalation — 32 attachments	CRO / Executive	'Festive break' delay. De-escalated to implicated department.
Dec 2025	Priority 1 Material Risk Report — 38 attachments	Board of Directors	Board silence. CRO gag order: 'stop emailing directors.'
Dec 2025	CCMA referrals WECT23564-25 and WECT24486-25	CCMA	Retaliatory affidavit: 'cynical excuse'; costs sought.
Dec 2025	Full regulatory complaints: FSQA, CMS, JSE, DEL, B-BBEE, SAHRC	Multiple bodies	Cascade regulatory deflection — 9 of 11 bodies failed.
Apr 2026	Protected disclosure to GEMS Board of Trustees	GEMS Board	Response awaited.
Apr 2026	Rule nisi / gag order — High Court 2026-086906	High Court	Interim suppression order. PDA Section 9(2)(a) override engaged.

PART E — GEXUS-DMS SYSTEMIC PATIENT SAFETY FAILURE

E.1 The Disclosure

On 23 October 2025, Matthee formally disclosed that the Disease Management System (DMS) and Gexus claims system at Medscheme were not communicating correctly. GEMS member 000655789 Dependent 02 transitioned from acute to chronic benefit in January 2025. Gexus recorded chronic claims from April 2023. DMS did not receive or recognise this update. Result: automated non-adherence letters dispatched on 19 May 2025 and 19 October 2025 to a compliant, elderly beneficiary. A Root Cause Analysis confirmed the gap is architectural — a structural design flaw, not an isolated error — affecting all 1.9 million GEMS members undergoing the acute-to-chronic benefit transition. It generates fresh maladministration with every automated non-adherence cycle.

E.2 Suppression at Board Level

Matthee's clinical disclosure was met with an 'insubordination' charge. The Priority 1 Material Risk Report submitted to the Board 9 December 2025 (38 attachments) was met with silence. The CRO issued a gag order ('stop emailing directors'). Board non-response is a primary ground in the Section 162 Director Delinquency Application (Case 2026-066952). The actuarial assumptions underpinning the GEMS 9.5% premium increase for 2026 may be contaminated by false non-adherence data from this unresolved gap.

E.3 CMS Re-Engagement — April 2026

The formal CMS follow-up of 2 April 2026 reframed the disclosure as administrator maladministration under MSA Sections 1, 7, 44, 47, and 58 — distinct from the professional conduct characterisation that led to the February 2026 jurisdictional declination.

DISCLOSURE ELEMENT	CMS STATUTORY DUTY	MSA PROVISION
Systemic Gexus-DMS integration error	Investigate maladministration & system integrity	Sections 1 & 47
Ongoing patient safety risk — 1.9M GEMS members	Protect beneficiary interests	Section 7
Priority 1 risk suppression at Board level	Review fitness for accreditation	Section 58
High Court delinquency application 2026-066952	Consider forensic inspection	Section 44

E.4 Discovery Health Precedent

In January 2026, the CMS confirmed jurisdiction over a technical pharmacy claims processing error at Discovery Health Medical Scheme affecting 16,507 members, acting proactively on media reports and third-party escalation. The Gexus-DMS failure is clinically more serious (false non-adherence affecting patient care), more widespread (1.9 million members structurally at risk), and supported by a formal RCA, a High Court filing, and a Board-level suppression record. The CMS cannot credibly decline jurisdiction here having exercised it there.

PART F — B-BBEE FRONTING FORENSIC ANALYSIS

F.1 Legal Threshold

Section 1(c) B-BBEE Act 53 of 2003: fronting includes a legal relationship with a black person for the purpose of achieving B-BBEE compliance without granting that person the economic benefits reasonably associated with their status or position. Section 13J criminalises fronting. Section 13J(5) prohibits false B-BBEE documentation. Section 13K grants mandatory subpoena powers.

F.2 Forensic Element Analysis

FRONTING ELEMENT	DOCUMENTARY EVIDENCE	FINDING
Legal relationship concluded	Appointment letter 09 Apr 2024 — 'Care Coordinator' Grade B4M1	ESTABLISHED
Purpose: B-BBEE compliance	NQF Level 8 black professional; recruited for 'Specialist: Care Manager' — management control role	Prima facie established
Without granting economic benefits	Grade B4M1 pay; 40.47% unlawful deduction; Certificate suppresses NQF title	ESTABLISHED
Status / position actually held	Specialist recruitment; 'Case Manager' Naming Convention; managed 13+ staff; H&S Acting Chairperson	ESTABLISHED

F.3 Certificate of Service Misrepresentation

The Certificate of Service (19 January 2026) records 'Care Coordinator.' HR written admission (Cheryl-Dawn Modern, 19 January 2026): 'The naming convention changes... I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented.' This selective exclusion — applied to the complainant's department only while all other departments received the 'Case Manager' update — constitutes both title suppression and B-BBEE fronting under Section 1(c).

F.4 Commission Failure — PAJA Review Grounds

The B-BBEE Commission's Notice of Non-Investigation (30 March 2026) is reviewable under PAJA Section 6(2)(e)(iii) — failure to take relevant facts into consideration. The Commission: (1) ignored the Naming Convention evidence; (2) ignored the HR written admission; (3) ignored the false Certificate of Service; (4) failed to use Section 13K subpoena powers to obtain the Naming Convention Teams recording; and (5) failed to sever the fronting allegations from labour components. The Commission did not say the fronting allegations were false — only that the matter was a labour dispute.

PART G — SANC PROFESSIONAL MISCONDUCT COMPLAINT

Formal complaint submitted to SANC 10 February 2026 — Reference: SANC/MEDSCHEME/MATTHEE/20260105. Respondents: Mary-Ann Jones (Team Leader) and Mapule Mashele (Senior Manager), both registered nurses employed by Medscheme Holdings. SANC has not responded. Ministerial escalation filed 16 February 2026. NDOH acknowledged and requested full correspondence (17-18 February 2026).

G.1 Mary-Ann Jones — Allegations & SANC Breaches

- 'Wilma' misgendering (23 Sep 2025): Public gender identity harassment. SANC Code of Ethics Clauses 2.1 (dignity) and 2.3 (non-discrimination); Nursing Act Section 56(1)(a); Rule 15(1)(k).
- Neglect of duty of care (21 May 2025): Instructed Matthee to 'leave the premises immediately' during documented psychiatric crisis without ensuring safe transport or immediate support. SANC Code Clause 3.1; Rule 15(1)(c) — abandonment.
- Retaliatory conduct (recorded, 31 Oct 2025): 'You made a case of harassment against me, so I can make a case of harassment against you.' SANC Code Clause 6; Rules 15(1)(k) and (m).
- Patient safety obstruction (23 Oct 2025): Instructed clinically incorrect action on vulnerable 75-year-old patient despite knowledge of Gexus-DMS system error. SANC Code Clause 7; Rule 15(1)(h) — failure to report danger to the public.

G.2 Mapule Mashele — Allegations & SANC Breaches

- Suppression of disclosures: Dismissed 'Wilma' complaint as 'typo'; failed to act on Priority 1 Material Risk Report; de-escalated protected disclosure to implicated department (5 December 2025). SANC Code Clauses 7 and 8; Rule 15(1)(h).
- Misuse of confidential psychiatric information: Held Dr Malan's diagnosis before authorising 40.47% unlawful deduction. Failed to provide reasonable accommodation. SANC Code Clause 4; principle of non-maleficence.
- Unethical leadership: Delegated discrimination investigation back to perpetrator; refused impartial grievance process; participated in institutional whitewash. SANC Code Clause 8; Nursing Act Section 56(1)(d).

SANC deregistered Matthee because he could not pay the R870 annual fee — a direct consequence of the unlawful deduction. He cannot practise as a nurse in 2026. The regulatory body that failed to investigate professional misconduct against his supervisors simultaneously revoked his own registration for non-payment of a fee he could not afford because of those supervisors' unlawful conduct.

PART H — SAHRC FORMAL UPDATE & HUMANITARIAN CRISIS

H.1 Forensic Payroll Misrepresentation (July 2025)

Gross Salary on Payslip	R21,777.04
Declared to SARS / UIF	R27,725.66
Discrepancy	R5,948.62 — arising in the identical pay cycle as the unlawful 40.47% deduction
Cross-Year Structure	Leave event: May-June 2025 (prior financial year). Deduction applied: July 2025 (new financial year). Deliberate structuring across financial year boundary.

The declared figure appears to reflect a pre-deduction or notional salary — reported to government as having been paid while simultaneously R14,811.77 was being recovered. A statutory declaration to SARS or the UIF Fund that does not correspond to actual net remuneration paid is a misrepresentation to a government authority in a document required by law to be accurate.

H.2 Consolidated Institutional Failure Register (May 2026)

BODY	DOCUMENTED STATUS AS AT MAY 2026
CCMA	FAILED — Commissioner pre-judged PDA claim; refused opening statement; laughed at settlement; departed with Respondent's representative.
CCMA Provincial Commissioner	COVER-UP — Commissioner's conduct never investigated; misdirected by institutional deflection.
Dept of Employment & Labour	PARTIALLY ACTIVE — No BCEA enforcement; UIF referral pending; Certificate of Service correction refused.
SAPS Delft	FAILED then REVERSED — Unlawfully refused criminal case; reversed by Brigadier Naidoo. CAS 705/3/2026 registered and transferred.
Labour Court Registry	OBSTRUCTING — 8 days; 7+ call centre attempts; deleted portal profile; 'good day you put date' rejection; portal inaccessible post-rejection.
Whistleblower House	DECLINED — 50-minute review; declined based on Schroter Law preliminary opinion.
SANC	SILENT — No response to misconduct complaint. Simultaneously deregistered complainant for non-payment caused by unlawful deduction.
South African Pharmacy Council	SILENT — No substantive response to complaint against Lisa Mari.
CMS	RE-ENGAGED (April 2026) — Initial declination overridden by maladministration reframing. Awaiting substantive response.

JSE Issuer Regulation	DECLINED — Referred to CCMA/Labour Court under Listings Requirements.
B-BBEE Commission	FAILED — Notice of Non-Investigation (30 March 2026); ignored fronting evidence; refused Section 13K subpoena powers.
NDOH / Minister of Health	ENGAGED — Acknowledged; requested full correspondence; most responsive body to date.

H.3 Humanitarian Crisis — Confirmed Status (May 2026)

- Four months rental arrears. Eviction threatened end of March 2026.
- Personal property physically removed by loan sharks as informal debt security.
- No running water at residence since January 2026.
- Income: none. No savings. No credit access. UIF inaccessible.
- Retirement fund: R48,400 forcibly withdrawn — decade of savings eliminated.
- SANC deregistration: cannot practise nursing in 2026.
- Accepted for CPUT PGDip Occupational Health Nursing 2026 — unable to enrol due to destitution.
- Formally diagnosed severe depression and PTSD (Dr Jacques Malan, FCPSYCH(SA)).
- Self-represented in nine concurrent regulatory proceedings with no legal aid.

This is not a list of hardships. It is a documented causal chain traceable to a single unlawful act: the R14,811.77 deduction on 23 July 2025 — imposed without consent, without consultation, in breach of the statutory cap, while the employer held a specialist psychiatrist's written warning of the complainant's vulnerability.

PART I — ACTIVE PROCEEDINGS & OUTSTANDING MATTERS

FORUM / CASE	SUBJECT	STATUS	URGENCY
WC High Court 2026-086906	AfroCentric v Matthee — Rule nisi / gag order (PDA s9(2)(a) override)	Supplementary Answering Affidavit filed 28 May 2026	CRITICAL
WC High Court 2026-066952	Section 162 Director Delinquency	Rule 42 Rescission Pending; audio recording outstanding	
WC High Court 2026-077546	BCEA Section 77A — Unlawful Deduction	Filed 2 April 2026; awaiting hearing date	HIGH
Labour Court WECT23564-25	Unfair Labour Practice	Certificate of Non-Resolution issued	HIGH
Labour Court WECT24486-25	Automatically Unfair Constructive Dismissal	Certificate of Non-Resolution issued	HIGH
B-BBEE Commission 5/02/2026	Fronting Practice Investigation	Active; PAJA review of Non-Investigation Notice intended	HIGH
SAPS CAS 705/3/2026	Criminal: UIF Non-Remittance	Transferred to Woodstock SAPS	HIGH
CMS — April 2026	Gexus-DMS Maladministration (MSA)	Awaiting substantive response	HIGH
SANC Complaint	Professional Misconduct Jones & Mashele	No response; escalated to NDOH/Minister	MEDIUM
SAHRC	Dignity, Equality, Access to Justice	Awaiting feedback on 13 March 2026 update	MEDIUM
DEL — UIF Unit	UIF Non-Compliance June 2025	Referred to Granville Van Wyk	HIGH
NDOH / Minister of Health	SANC Non-Response	NDOH engaged; most responsive body	MEDIUM
Parliamentary Submission	Full portfolio — May 2026	Submitted to Speaker and four Portfolio Committees	ACTIVE

PART J — EVIDENCE ANNEXURE INDEX (A – AA)

All annexures are authentic contemporaneous documents. Items marked $\triangle$ are identified in the Forensic Audit Gap Report (Part X) as requiring supplementation before the portfolio is evidentially complete.

REF	DOCUMENT	EVIDENTIARY SIGNIFICANCE
A	Interview invitations — 'Specialist: Care Manager' (Jan–Apr 2024)	Establishes Specialist recruitment — foundational bait-and-switch / B-BBEE fronting evidence.
B	Employment contract — 'Care Coordinator' Grade B4M1 (09 Apr 2024)	Core title suppression document. Contradicts recruitment record.
C	Dr Jacques Malan psychiatric letter (16 May 2025)	KEY EXHIBIT — Disability formally disclosed before unlawful deduction. Establishes bad faith and disability knowledge.
D	Jones 'no staggering' statement (16 Apr 2025)	Employer's written position contradicts HCBP Policy — contextualises July deduction.
E	July 2025 payslip — 40.47% deduction (R14,811.77)	KEY EXHIBIT — Quantifies BCEA Section 34(2) breach. Net pay R15,679.29.
F	Jones AOD Policy + 'what is illegal?' email (24 Jul 2025)	KEY EXHIBIT — Employer knew 25% cap; wilfully exceeded it. $\triangle$ Full email thread required as standalone exhibit.
G	'Wilma' Teams screenshot (23 Sep 2025)	EEA Section 6 — gender identity discrimination. Direct evidence.
H	Formal 11-page discrimination complaint (25 Sep 2025)	Anchor document for PDA retaliation chain. $\triangle$ Full 11-page document required as standalone PDF.
I	Retaliatory double unpaid leave entry (29 Sep 2025)	Loaded same day as formal complaint; reversed after escalation. $\triangle$ System screenshot required.
J	Mashele whitewash closure — 'typo' finding (01 Oct 2025)	Institutional bad faith — complainant not removed from hostile reporting line.
K	Gexus-DMS RCA and patient safety disclosure (23 Oct 2025)	PDA-protected disclosure. Architectural integration flaw. 1.9M GEMS beneficiaries at risk.
L	Recorded retaliatory admission (31 Oct 2025)	SMOKING GUN — Jones audio recording. $\triangle$ MP3 file required as separate exhibit.
M	Formal 3-page grievance against Jones (02 Nov 2025)	Initiates 30+ day institutional silence. Establishes futility of internal remedies.
N	Priority 1 Material Risk Report (09 Dec 2025) — 38 attachments	Board-level governance escalation. Suppression = Section 162 delinquency ground. $\triangle$ Full bundle required.
O	Employer opposing CCMA affidavit — Manyati (10 Dec 2025)	'Cynical excuse'; seeks costs. Bad faith litigation — retaliation under oath.
P	Resignation letter (12 Dec 2025)	LRA Section 186(1)(e) constructive dismissal.
Q	CCMA Certificates of Non-Resolution (09 Jan 2026)	WECT23564-25 & WECT24486-25 — jurisdictional gateway to Labour Court.
R	Cheryl-Dawn Modern written admission (19 Jan 2026)	KEY EXHIBIT — Naming convention 'not applied to your department.' Core B-BBEE fronting evidence.
S	uFiling extract — June 2025 'No Information'	Criminal evidence — UIF contributions deducted, not remitted. SAPS CAS 705/3/2026.

T	July 2025 SARS/UIF declared salary vs payslip (R5,948.62 gap)	Forensic payroll misrepresentation. Δ SARS ITA / UIF declaration for July 2025 required.
U	CMS follow-up letter — maladministration (02 Apr 2026)	Reframes Gexus-DMS under MSA Sections 1,7,44,47,58. Discovery Health precedent cited.
V	SANC complaint — Jones & Mashele (10 Feb 2026)	Professional misconduct: SANC Code Clauses 2.1,2.3,3.1,4,6,7,8; Nursing Act Section 56.
W	B-BBEE Forensic Report — EthicHawks (April 2026)	Element-by-element fronting analysis; Commission failure; PAJA review grounds.
X	Master Forensic Governance & Regulatory Register (03 Apr 2026)	Definitive 148-entry chronological record. Primary trial preparation document.
Y	SAHRC comprehensive update (13 March 2026)	Payroll forensic finding; CCMA bias; Labour Court obstruction; imminent eviction confirmed.
Z	SAPS SMS CAS 705/3/2026 (19 & 25 Mar 2026)	Criminal case registration and transfer confirmation — active investigation.
AA	High Court gag order (2026-086906) & Supplementary Answering Affidavit (28 May 2026)	PDA Section 9(2)(a) override; perjury schedule Table 1; Biowatch costs challenge.

PART K — PARLIAMENTARY SUBMISSION STATEMENT

This portfolio is submitted to Parliament in terms of Section 56 of the Constitution and the Protected Disclosures Act 26 of 2000. It is directed to the Portfolio Committees on Health, Employment & Labour, Trade Industry & Competition, and Justice & Constitutional Development.

The matters documented are not personal grievances. They are matters of constitutional, clinical, and governance significance requiring parliamentary attention because:

- A systemic patient safety risk affecting 1.9 million GEMS beneficiaries was formally documented, escalated to Board level, and suppressed. It remains unremediated and may be contaminating actuarial data for the 2026 premium increase.
- A formally disabled whistleblower was subjected to induced destitution — homeless, unable to practise his profession, unable to afford medication — as a direct consequence of the Respondent's unlawful conduct and the failure of eleven statutory institutions.
- The regulatory carousel pattern documented in this portfolio constitutes a systemic access to justice failure that no individual litigant should absorb alone.
- B-BBEE fronting within the healthcare administration sector raises questions about the integrity of compliance reporting and the Commission's investigative capacity.
- A High Court interim gag order (Case 2026-086906) has been granted on POPIA grounds — notwithstanding that PDA Section 9(2)(a) provides that a protected disclosure overrides confidentiality duties. This tension requires urgent parliamentary and judicial resolution.

Parliamentary Relief Requested

1. Full parliamentary inquiry into the Gexus-DMS systemic failure and its impact on GEMS beneficiaries (proposed Terms of Reference in Part Q).
2. Direction to CMS to report on its handling of this protected disclosure and the current remediation status of the Gexus-DMS integration gap.
3. Direction to the B-BBEE Commission to account for failure to use Section 13K subpoena powers and to reconsider the fronting investigation.
4. Direction to DEL to report on UIF non-compliance by Medscheme Holdings and outcome of the integrated inspection.
5. Direction to SANC to report on the professional misconduct complaint and the deregistration of the complainant caused by the Respondent's unlawful conduct.
6. Legislative review of the Protected Disclosures Act to address the regulatory carousel, induced destitution loophole, and tension with POPIA.
7. Parliamentary legal assistance for the complainant — destitute, self-represented, in nine concurrent proceedings.

PART L — COVERING LETTER: SPEAKER OF THE NATIONAL ASSEMBLY

EthicHawks Forensic Governance & Compliance Consultancy

15 Bellevue Street, Voorbrug, Cape Town, 7100 | info@ethichawks.co.za | 069 635 1435

Date: May 2026

TO: The Honourable Speaker of the National Assembly

Parliament of the Republic of South Africa | PO Box 15, Cape Town, 8000

By hand and email: speaker@parliament.gov.za

Dear Honourable Speaker,

RE: FORMAL PROTECTED DISCLOSURE AND REQUEST FOR PARLIAMENTARY OVERSIGHT — SYSTEMIC GOVERNANCE FAILURE, WHISTLEBLOWER RETALIATION, AND REGULATORY CASCADE COLLAPSE

I, Wilbur William Matthee, a Specialist Registered Nurse (NQF Level 8) and former employee of Medscheme Holdings / AfroCentric Health, submit this Consolidated Protected Disclosure Portfolio in terms of the Protected Disclosures Act 26 of 2000 (as amended) and the constitutional right of access to the National Legislature under Section 56 of the Constitution.

This portfolio documents:

1. A systemic patient safety risk affecting 1.9 million GEMS beneficiaries (Gexus-DMS integration gap), suppressed at Board level and unremediated.
2. A sustained pattern of retaliation against a formally disabled whistleblower — unlawful 40.47% salary deduction, gender identity harassment, and a sworn CCMA affidavit dismissing a specialist psychiatric diagnosis as a 'cynical excuse.'
3. The complete failure of eleven statutory institutions — CCMA, DEL, SAPS, CMS, SAHRC, JSE, B-BBEE Commission, and SANC — to provide any effective remedy.
4. Induced destitution: confirmed eviction, loss of nursing registration, seizure of personal property, depletion of retirement savings, and inability to afford prescribed psychiatric medication.
5. A High Court interim gag order (Case 2026-086906) obtained on POPIA grounds, notwithstanding that PDA Section 9(2)(a) provides that a protected disclosure overrides confidentiality obligations.

This is not a personal grievance. It is a matter of constitutional, clinical, and governance significance requiring urgent parliamentary intervention.

I respectfully request that you refer this portfolio to the Portfolio Committees on Health, Employment & Labour, Trade & Industry, and Justice & Constitutional Development for oversight action as set out in Part K of the attached portfolio. I am available to present oral evidence to any committee.

Yours faithfully,

WILBUR WILLIAM MATTHEE

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

Enclosures: Consolidated Portfolio (May 2026); Exhibit Index; Draft Parliamentary Questions; Proposed Terms of Reference

PART M — COVERING LETTERS: PORTFOLIO COMMITTEE CHAIRPERSONS

M.1 Portfolio Committee on Health

TO: The Chairperson — Portfolio Committee on Health | Email: health@parliament.gov.za

RE: PROTECTED DISCLOSURE — REQUEST FOR PARLIAMENTARY OVERSIGHT (SECTION 56 OF THE CONSTITUTION)

Dear Chairperson, I submit the attached Consolidated Protected Disclosure Evidence Portfolio for the urgent attention of your Committee. The mandate of the Portfolio Committee on Health is directly engaged as follows:

Gexus-DMS systemic failure affecting 1.9 million GEMS beneficiaries (Priority 1 patient safety risk); SANC's failure to investigate professional misconduct by Jones and Mashele; CMS jurisdiction deflection despite the Discovery Health precedent; SANC deregistration of complainant as a direct consequence of unlawful conduct by registered nurses under its oversight.

I respectfully request that your Committee: (1) Schedule an oversight hearing; (2) Summon relevant accounting officers and directors; (3) Direct regulatory bodies in your mandate to report on their handling; (4) Consider legislative amendments proposed in Part P. I am available to provide oral testimony.

Yours faithfully — WILBUR WILLIAM MATTHEE | RN | BTech | PGDip Health Services Management (NQF 8) | Founder — EthicHawks

M.2 Portfolio Committee on Employment & Labour

TO: The Chairperson — Portfolio Committee on Employment & Labour | Email: labour@parliament.gov.za

RE: PROTECTED DISCLOSURE — REQUEST FOR PARLIAMENTARY OVERSIGHT (SECTION 56 OF THE CONSTITUTION)

Dear Chairperson, I submit the attached Consolidated Protected Disclosure Evidence Portfolio for the urgent attention of your Committee. The mandate of the Portfolio Committee on Employment & Labour is directly engaged as follows:

Unlawful salary deduction (40.47%, breach of BCEA Section 34(2)); UIF non-remittance (June 2025, criminal — SAPS CAS 705/3/2026); DEL's refusal to enforce UI-19 correction; CCMA institutional bias and Commissioner's pre-judged PDA claim before hearing; Certificate of Service misrepresentation under BCEA Section 42.

I respectfully request that your Committee: (1) Schedule an oversight hearing; (2) Summon relevant accounting officers and directors; (3) Direct regulatory bodies in your mandate to report on their handling; (4) Consider legislative amendments proposed in Part P. I am available to provide oral testimony.

Yours faithfully — WILBUR WILLIAM MATTHEE | RN | BTech | PGDip Health Services Management (NQF 8) | Founder — EthicHawks

M.3 Portfolio Committee on Trade & Industry

TO: The Chairperson — Portfolio Committee on Trade & Industry | Email: tradeindustry@parliament.gov.za

RE: PROTECTED DISCLOSURE — REQUEST FOR PARLIAMENTARY OVERSIGHT (SECTION 56 OF THE CONSTITUTION)

Dear Chairperson, I submit the attached Consolidated Protected Disclosure Evidence Portfolio for the urgent attention of your Committee. The mandate of the Portfolio Committee on Trade & Industry is directly engaged as follows:

B-BBEE fronting (title suppression, false Certificate of Service, Section 1(c) B-BBEE Act); B-BBEE Commission's failure to use Section 13K subpoena powers; AfroCentric's non-disclosure of material litigation (Section 162 application) in its Integrated Report; JSE Listings Requirements gap at holding company level.

I respectfully request that your Committee: (1) Schedule an oversight hearing; (2) Summon relevant accounting officers and directors; (3) Direct regulatory bodies in your mandate to report on their handling; (4) Consider legislative amendments proposed in Part P. I am available to provide oral testimony.

Yours faithfully — WILBUR WILLIAM MATTHEE | RN | BTech | PGDip Health Services Management (NQF 8) | Founder — EthicHawks

M.4 Portfolio Committee on Justice & Constitutional Development

TO: The Chairperson — Portfolio Committee on Justice & Constitutional Development | Email: justice@parliament.gov.za

RE: PROTECTED DISCLOSURE — REQUEST FOR PARLIAMENTARY OVERSIGHT (SECTION 56 OF THE CONSTITUTION)

Dear Chairperson, I submit the attached Consolidated Protected Disclosure Evidence Portfolio for the urgent attention of your Committee. The mandate of the Portfolio Committee on Justice & Constitutional Development is directly engaged as follows:

Access to justice failures (OCJ portal obstruction; SAPS Delft unlawful refusal to open criminal case; Registrar non-response; Section 34 constitutional violation); perjury in CCMA affidavit; PDA gaps enabling regulatory carousel; tension between POPIA and PDA Section 9(2)(a) arising from High Court gag order in Case 2026-086906.

I respectfully request that your Committee: (1) Schedule an oversight hearing; (2) Summon relevant accounting officers and directors; (3) Direct regulatory bodies in your mandate to report on their handling; (4) Consider legislative amendments proposed in Part P. I am available to provide oral testimony.

Yours faithfully — WILBUR WILLIAM MATTHEE | RN | BTech | PGDip Health Services Management (NQF 8) | Founder — EthicHawks

PART N — PARLIAMENTARY EXECUTIVE SUMMARY (STAFF BRIEF)

Prepared for parliamentary committee researchers and legal advisors requiring a non-technical overview before reading the full portfolio.

1. The Whistleblower

Wilbur William Matthee — Specialist Registered Nurse (NQF Level 8), 18 years clinical governance experience. Employed by Medscheme Holdings (AfroCentric Health subsidiary, administrator of GEMS) from 2 May 2024. Constructively dismissed 12 December 2025. Founder of EthicHawks Forensic Governance & Compliance Consultancy. Self-represented in nine concurrent regulatory proceedings. No legal aid.

2. The Core Protected Disclosures

- Gexus-DMS: Systemic integration flaw generating false non-adherence letters to GEMS beneficiaries. RCA confirms architectural defect. 1.9 million members at structural risk. Board suppressed Priority 1 report.
- B-BBEE fronting: Recruited as 'Specialist: Care Manager' (NQF Level 8); contracted as 'Care Coordinator.' Title suppression for B-BBEE scorecard benefit.
- UIF fraud: June 2025 contributions deducted but not remitted. SAPS case CAS 705/3/2026 active.
- Forensic payroll misrepresentation: R5,948.62 gap between SARS-declared and payslip gross for July 2025.

3. Retaliation Suffered

- Unlawful deduction: 40.47% (R14,811.77) — nearly double the 25% BCEA statutory cap — imposed while employer held specialist psychiatric letter.
- Gender identity harassment: 'Wilma' misgendering; whitewash investigation; left in hostile reporting line.
- Sworn CCMA affidavit: employer dismissed specialist-diagnosed PTSD as 'cynical excuse.'
- Constructive dismissal: 12 December 2025 — automatically unfair under LRA Section 187(1)(f).
- High Court gag order: interim order in Case 2026-086906 attempting to suppress protected disclosures. PDA Section 9(2)(a) override engaged.

4. Regulatory Cascade Failure — 11 Bodies

BODY	OUTCOME
CCMA	Commissioner pre-judged PDA claim; refused opening statement; mocked settlement
DEL	Declined BCEA jurisdiction; UIF referral incomplete; Certificate correction refused
SAPS	Initially refused criminal docket — reversed by Brigadier Naidoo

CMS	Declined jurisdiction; re-engaged April 2026 on maladministration grounds
JSE	Declined under Listings Requirements
SAHRC	Referred back to CCMA
B-BBEE Commission	Ignored fronting evidence; refused Section 13K subpoena powers
SANC	No response to misconduct complaint; simultaneously deregistered complainant
SAPC	No substantive response
HPCSA	No jurisdiction over nurses; passed to SANC
Whistleblower House	Declined after 50-minute review

Only the NDOH / Minister of Health has engaged substantively.

5. Humanitarian Consequences

- Eviction threatened; no running water since January 2026; possessions seized by loan sharks.
- SANC deregistration — cannot practise nursing in 2026. Retirement fund depleted (R48,400).
- Formally diagnosed severe depression and PTSD.

6. Parliamentary Relief Requested

8. Parliamentary inquiry into Gexus-DMS systemic failure.
9. Direction to CMS, B-BBEE Commission, DEL, and SANC to report on their handling.
10. PDA legislative amendments: single whistleblower authority; interim hardship relief; criminal penalties for institutional bad faith.
11. Resolution of POPIA/PDA tension arising from Case 2026-086906 gag order.
12. Parliamentary legal assistance for destitute self-represented whistleblower.

PART O — PARLIAMENTARY EXHIBIT INDEX

Cross-references all exhibits with committee relevance. Items marked  are pending supplementation as identified in Part X.

EX-REF	DOCUMENT	DATE	COMMITTEE RELEVANCE
EX-A	Interview invitations — 'Specialist: Care Manager'	Jan 2024	Trade & Industry (B-BBEE fronting)
EX-B	Employment contract — 'Care Coordinator' B4M1	9 Apr 2024	Trade & Industry; Employment & Labour
EX-C	Dr Jacques Malan psychiatric letter	16 May 2025	Health; Justice (disability discrimination)
EX-D	Jones 'no staggering' statement	16 Apr 2025	Employment & Labour
EX-E	July 2025 payslip — 40.47% deduction	23 Jul 2025	Employment & Labour
EX-F	AOD Policy + 'what is illegal?' email	24 Jul 2025	Employment & Labour  standalone required
EX-G	'Wilma' Teams screenshot	23 Sep 2025	Justice (EEA Section 6)
EX-H	Formal 11-page discrimination complaint	25 Sep 2025	Justice; Employment & Labour  standalone required
EX-I	Retaliatory double unpaid leave entry	29 Sep 2025	Employment & Labour  system screenshot required
EX-J	Mashele whitewash closure — 'typo' finding	1 Oct 2025	Justice; Employment & Labour
EX-K	Gexus-DMS RCA and patient safety disclosure	23 Oct 2025	Health (Priority 1 risk)
EX-L	Audio — Jones retaliatory admission (MP3)	31 Oct 2025	Justice; Employment & Labour  audio file required
EX-M	Formal 3-page grievance against Jones	2 Nov 2025	Employment & Labour
EX-N	Priority 1 Material Risk Report (38 attachments)	9 Dec 2025	Health; Trade & Industry  full bundle required
EX-O	Employer opposing CCMA affidavit — Manyati (perjury)	10 Dec 2025	Justice; Employment & Labour
EX-P	Resignation letter — constructive dismissal	11-12 Dec 2025	Employment & Labour
EX-Q	CCMA Certificates of Non-Resolution	9 Jan 2026	Employment & Labour
EX-R	Cheryl-Dawn Modern written admission	19 Jan 2026	Trade & Industry (B-BBEE fronting)
EX-S	uFiling screenshot — 'No Information' June 2025	2026	Employment & Labour (UIF fraud)
EX-T	SARS/UIF declared salary vs payslip gap	Jul 2025	Employment & Labour  SARS declaration required

EX-U	CMS follow-up letter — maladministration	2 Apr 2026	Health
EX-V	GEMS protected disclosure to GEMS Board	13 Apr 2026	Health
EX-W	Section 162 Director Delinquency Application	19 Mar 2026	Trade & Industry (Companies Act)
EX-X	Rule nisi / gag order — High Court 2026-086906	16 Apr 2026	Justice
EX-Y	Supplementary Answering Affidavit (perjury schedule)	28 May 2026	Justice
EX-Z	Labour Court BCEA Section 77A application	2 Apr 2026	Employment & Labour
EX-AA	Master Chronological Register (148 entries)	3 Apr 2026	All Committees

PART P — DRAFT PARLIAMENTARY QUESTIONS

The following questions are submitted for consideration by each Portfolio Committee in oversight hearings.

P.1 Portfolio Committee on Health — Questions to Minister / DG / CMS Registrar

13. Is the Minister aware that the Gexus-DMS integration gap has been generating false non-adherence letters to GEMS beneficiaries, including a 75-year-old compliant member? What steps has the Department taken? What is the current remediation status? How many members have received incorrect non-adherence letters?
14. Why has the CMS declined jurisdiction twice despite the Discovery Health precedent (January 2026) confirming CMS jurisdiction over technical system failures at administrators? Will the Minister direct CMS to investigate Medscheme's administrator maladministration under MSA Sections 1, 7, 44, 47, and 58?
15. SANC deregistered Mr Matthee because he could not pay R870 — a direct consequence of the Respondent's unlawful salary deduction. Why has SANC not responded to the formal professional misconduct complaint (10 February 2026) against Jones and Mashele? What oversight does the Minister exercise over SANC's complaint-handling timelines?
16. What is the Department's position on the HPCSA-SANC-CMS regulatory carousel where each body deflects nursing whistleblower complaints to another, leaving no effective remedy for a whistleblower who exposed a patient safety risk affecting 1.9 million GEMS beneficiaries?

P.2 Portfolio Committee on Employment & Labour — Questions to Minister / DG DEL / CCMA

17. The DEL has refused to issue a compliance order to correct a UI-19 form misrepresenting a constructive dismissal as a 'resignation' (Code 6). Does the DEL accept that an employer's false UIF declaration is a criminal offence under Section 56 of the UIF Contributions Act? Why has no enforcement action been taken against Medscheme Holdings despite a formal complaint?
18. A deduction of 40.47% (R14,811.77) was made — nearly double the 25% statutory cap under BCEA Section 34(2). The employer acknowledged the cap in writing. Why has the DEL not investigated this ex facie illegal deduction?
19. The CCMA Commissioner pre-judged the PDA claim before hearing any evidence, refused the applicant's opening statement, and openly mocked his settlement position. What action has been taken following the formal bias complaint? Will the Department support an independent inquiry into this Commissioner's conduct?
20. Mr Matthee's Certificate of Service deliberately suppressed his NQF Level 8 title to 'Care Coordinator' — a statutory misrepresentation under BCEA Section 42. Why has the DEL refused to compel a corrected certificate?

P.3 Portfolio Committee on Trade & Industry — Questions to Minister / B-BBEE Commission CEO

21. Mr Matthee was recruited as 'Specialist: Care Manager' (NQF Level 8) but contracted as 'Care Coordinator' (Grade B4M1). The employer's HR Business Partner admitted in

writing that the naming convention was 'not applied to your department.' Does this constitute B-BBEE fronting under Section 1(c)? Why has the Commission not used its Section 13K subpoena powers to obtain the Naming Convention Teams recording?

22. The Commission declined to investigate despite written evidence of title suppression. What criteria does the Commission apply to determine 'substantive fronting'? Will the Commission reconsider given the Cheryl-Dawn Modern written admission?
23. AfroCentric Investment Corporation's Integrated Report of 8 April 2026 omitted mention of the active Section 162 Director Delinquency Application and the B-BBEE Commission investigation. Is the CIPC investigating this material non-disclosure under the Companies Act?
24. Does the Minister believe the JSE's current Listings Requirements adequately capture governance failures at holding company level when a subsidiary suppresses a whistleblower? Should Section 7.D.11 be amended?

P.4 Portfolio Committee on Justice & Constitutional Development — Questions to Minister

25. Mr Matthee's Section 34 right of access to court was obstructed by: OCJ portal rejecting filings for 'good day you put date'; Labour Court call centre unreachable for eight days; Registrar failing to provide a court audio recording; and SAPS Delft unlawfully refusing to open a criminal case. What systemic reforms are planned to protect self-represented litigants from such barriers?
26. The employer's CCMA opposing affidavit dismissed a specialist-diagnosed psychiatric condition as a 'cynical excuse' — made under oath by a lay HR official with no medical qualifications. Has the NPA been directed to investigate perjury? If not, why not?
27. The Protected Disclosures Act was intended to protect whistleblowers. Yet in this matter eleven institutions deflected. Does the Minister support PDA amendments to create: (a) a single whistleblower protection authority; (b) a statutory right to interim relief including hardship payments; and (c) criminal penalties for institutional bad faith in deflecting protected disclosures?
28. The High Court granted a rule nisi gag order on POPIA grounds in Case 2026-086906. PDA Section 9(2)(a) provides that a protected disclosure overrides confidentiality duties. Is the Department aware of this tension? Will it issue a practice directive clarifying that the PDA prevails in whistleblowing contexts?

PART Q — PROPOSED TERMS OF REFERENCE: PARLIAMENTARY INQUIRY

PROPOSED DRAFT RESOLUTION FOR A PARLIAMENTARY INQUIRY INTO THE GEXUS-DMS SYSTEMIC FAILURE AND REGULATORY CASCADE COLLAPSE — Submitted for consideration by the Portfolio Committee on Health with the concurrence of the Portfolio Committees on Employment & Labour, Trade & Industry, and Justice & Constitutional Development in terms of Section 56 of the Constitution and the Powers and Privileges of Parliament Act, 2004.

Q.1 Terms of Reference

29. To investigate the existence, cause, and duration of the Gexus-DMS systemic integration gap at Medscheme Holdings and its impact on: (a) patient safety and clinical data integrity for 1.9 million GEMS beneficiaries; (b) the accuracy of non-adherence communications; and (c) the actuarial assumptions underlying the GEMS 9.5% premium increase for 2026.
30. To investigate the handling of the protected disclosure by: (a) Medscheme Holdings and AfroCentric Health management; (b) the Board of Directors of AfroCentric Investment Corporation Limited; and (c) the CRO (Monwabisi Kula) who issued a gag order directing the complainant to stop emailing directors.
31. To investigate the conduct of: (a) Council for Medical Schemes; (b) South African Nursing Council; (c) South African Pharmacy Council; (d) HPCSA; (e) Department of Employment and Labour; (f) CCMA including Commissioner Nthabiseng; (g) South African Human Rights Commission; (h) B-BBEE Commission; (i) Johannesburg Stock Exchange; and (j) SAPS (Delft and Woodstock).
32. To investigate the compliance of AfroCentric Investment Corporation Limited with: (a) JSE Listings Requirements regarding SENS disclosure of material litigation; (b) the B-BBEE Act regarding fronting; and (c) the Companies Act regarding director delinquency.
33. To investigate the adequacy of the Protected Disclosures Act 26 of 2000 in preventing regulatory carousel deflection and induced destitution of whistleblowers. To consider the tension between POPIA and PDA Section 9(2)(a) as exemplified by the gag order in Case 2026-086906.
34. To make recommendations for: (a) remedial action to correct the Gexus-DMS integration gap; (b) disciplinary and/or criminal prosecution of identified individuals; (c) legislative amendments to the PDA, MSA, EEA, and BCEA; and (d) administrative reforms at DEL, CCMA, CMS, SANC, and B-BBEE Commission.

Q.2 Powers of the Inquiry

- Summon any person to appear to give evidence on oath.
- Require production of any document — including the unredacted CMS Business Plan, APN 303 actuarial logs, and the Naming Convention Teams recording.
- Admit any evidence including audio recordings and forensic audit reports.
- Report findings and recommendations to the National Assembly within six months.

Q.3 Composition & Funding

Five members: three from the Portfolio Committee on Health; one each from Employment & Labour and Justice & Constitutional Development. Funded from parliamentary appropriations. The whistleblower to be provided with reasonable parliamentary legal assistance in light of his destitution and the number of concurrent proceedings.

PART R — SCHEDULE OF PERSONS & BODIES TO BE SUMMONED

R.1 Directors and Officers of AfroCentric Investment Corporation Limited

NAME	POSITION	REASON FOR SUMMONS
Gerald Neville Van Wyk	Group CEO	Signed false affidavit; breached confidentiality of protected disclosure; aware of Gexus-DMS gap.
Bruno Fernandes	Lead Independent Director	Received P1 Material Risk Report (9 Dec 2025); failed to act; no response to humanitarian notices.
Dr Nkateko Munisi	Chair: Social & Ethics Committee	Received P1 report; committee mandate includes EEA compliance; failed to investigate discrimination.
Alice Le Roux	Chair: Audit & Risk Committee	Received P1 report; failed to oversee risk escalation; signed Integrated Report omitting material litigation.
LSM Mpumlwana	Group Company Secretary	Received all escalations; failed to ensure Board engagement; filed false supplementary affidavit.

R.2 Management and Staff of Medscheme Holdings

NAME	POSITION	REASON FOR SUMMONS
Mary-Ann Jones	Team Leader (ADRM)	'Wilma' gender harassment; recorded retaliatory admission ('you made a case against me...'); instructed clinically incorrect patient feedback.
Mapule Mashele	Senior Manager	Whitewashed discrimination complaint as 'typo'; refused to remove complainant from hostile reporting line; ignored Dr Malan's psychiatric letter before unlawful deduction.
Lisa Mari	Responsible Pharmacist	Failed statutory duty under Pharmacy Act; instructed clinically incorrect communication to vulnerable member.
Monwabisi Kula	Chief Risk Officer	Issued gag order ('stop emailing directors'); suppressed P1 Material Risk Report from Board.
Cheryl-Dawn Modern	Senior HR Business Partner	Written admission: naming convention 'not applied to your department.' Refused to correct Certificate of Service.
Xolile Vincent Manyati	Senior Employee Relations Specialist	CCMA affidavit dismissing specialist-diagnosed PTSD as 'cynical excuse' — potential perjury.

R.3 Regulatory Officials and Bodies Required to Produce Documents

NAME / BODY	POSITION / DOCUMENT	REASON FOR SUMMONS / DOCUMENTS REQUIRED
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Commissioner Nthabiseng	CCMA Commissioner (Johannesburg)	Pre-judged PDA claim before hearing; refused opening statement; departed with Respondent's representative.
CMS Registrar / Commissioner	Council for Medical Schemes	Complete file on Gexus-DMS complaint; minutes of any meetings discussing Discovery Health precedent.
SANC Registrar	South African Nursing Council	Professional misconduct complaint file SANC/MEDSCHEME/MATTHEE/20260105; deregistration.
B-BBEE Commission	Chief Executive	Complete investigation file Case 5/02/2026; reasons for declining Section 13K subpoena powers.
GEMS Board of Trustees	Principal Officer	Minutes of any meeting where Gexus-DMS gap was discussed; response to 13 April 2026 protected disclosure.
Dr Jacques Malan, FCPSYCH(SA)	Specialist Psychiatrist	Expert evidence on disability and occupational causation. (Voluntary witness — letter already provided.)

PART S — AFFIDAVIT OF SERVICE (PARLIAMENTARY SUBMISSION)

AFFIDAVIT OF SERVICE — PARLIAMENTARY SUBMISSION

I, the undersigned, WILBUR WILLIAM MATTHEE (ID No: 890903 5151 087), do hereby make oath and state:

35. On [date to be completed], I caused the following documents to be delivered to the Parliament of the Republic of South Africa: (a) one hard copy of the Consolidated Protected Disclosure Evidence Portfolio (May 2026); (b) one USB drive containing the full portfolio in PDF format and all audio recordings; (c) the covering letters addressed to the Speaker and each Portfolio Committee Chairperson; (d) the Executive Summary, Exhibit Index, Draft Parliamentary Questions, and Proposed Terms of Reference.
36. Service was effected by: (a) hand delivery to Parliamentary Reception, 90 Plein Street, Cape Town, at [time] on [date], as evidenced by the attached stamped receipt (Annexure PS-1); and (b) electronic mail to: speaker@parliament.gov.za; health@parliament.gov.za; labour@parliament.gov.za; tradeindustry@parliament.gov.za; justice@parliament.gov.za. Delivery confirmations attached as Annexure PS-2.
37. I confirm that the documents served are true and complete copies of the portfolio as filed with this affidavit.

DEPONENT: WILBUR WILLIAM MATTHEE

Signed and sworn before me at Cape Town on this _____ day of _____ 2026.

COMMISSIONER OF OATHS: _____ Full Name:

Business Address: _____ Commission Expiry Date:

PART T — LEGAL PRIVILEGE LOG

No document has been intentionally withheld from Parliament on grounds of legal professional privilege or confidentiality.

DOCUMENT / CATEGORY	PRIVILEGE CLAIMED	EXPLANATION
No documents withheld by whistleblower	None	All documents are public court filings or voluntarily disclosed by the whistleblower.
Naming Convention Teams recording (May 2025)	N/A — not in whistleblower's possession	Employer refused to produce. Absence is due to employer suppression. Subpoena under B-BBEE Act Section 13K and parliamentary summons requested.
Medical records of GEMS beneficiary	Privacy — POPIA; consent not obtained	Patient's personal information not included. Gexus-DMS disclosure documented through system records, RCA reports, and non-adherence letter templates only.
Unredacted GEMS CMS Business Plan	Commercially confidential (held by GEMS/CMS)	Demanded in discovery in Case 2026-086906. Not in whistleblower's possession.

I confirm that no document has been intentionally withheld from Parliament on grounds of legal professional privilege or confidentiality. — WILBUR WILLIAM MATTHEE

PART U — TABLE OF CASE LAW & LEGISLATIVE REFERENCES

U.1 Case Law

CASE NAME	CITATION	RELEVANCE
Setlogelo v Setlogelo	1914 AD 221	Requirements for interdict; clean hands doctrine.
Luna Meubels Vervaardigers v Makin	1977 (4) SA 135 (W)	Self-created urgency cannot found urgent relief.
Minister of Health v New Clicks SA	2006 (2) SA 311 (CC)	Respondent may bring counter-application within answering affidavit.
Biowatch Trust v Registrar, Genetic Resources	2009 (6) SA 232 (CC)	Private litigants enforcing constitutional rights should not be penalised with costs. Basis for challenging Scale C costs order.
Gauteng Dept of Health v Tsomakae	GAJB 5554-16 [2017]	Continuous harm doctrine resets 90-day referral clock for unfair labour practices.
Shoprite Checkers v CCMA & Others	(1998) 19 ILJ 892 (LC)	Factors for condonation: degree of lateness, explanation, prospects of success, prejudice.
Molla v Shal & NO others	(2007) 28 ILJ 1028 (LAC)	Excessive delay without explanation may justify dismissal of condonation.
Olympic Passenger Services v Ramlagan	1957 (2) SA 382 (D)	Applicant for interdict must demonstrate absence of alternative remedy.
Mkhatshwa v Mkhatshwa	2021 (5) SA 447 (CC)	Vexatious litigation warrants punitive costs.
Nortje en 'n Ander v Prokureur-Generaal	1978 (2) SA 659 (C)	Distinction between threats of harm and assertion of legal rights (extortion).

U.2 Legislation

- Protected Disclosures Act 26 of 2000 (Sections 1, 3, 6, 7, 8, 9, 9(2)(a))
- Labour Relations Act 66 of 1995 (Sections 185, 186(1)(e), 187(1)(f)(h), 194(3))
- Employment Equity Act 55 of 1998 (Sections 6, 60)
- Basic Conditions of Employment Act 75 of 1997 (Sections 34, 42, 77A)
- Companies Act 71 of 2008 (Sections 76, 162)
- B-BBEE Act 53 of 2003 (Sections 1(c), 13J, 13J(5), 13K)
- Medical Schemes Act 131 of 1998 (Sections 1, 7, 44, 47, 58)
- Unemployment Insurance Contributions Act 4 of 2002 (Section 56 — criminal)
- Protection of Personal Information Act 4 of 2013 (Sections 19-22, 26) — Respondent cited to obtain gag order; overridden by PDA Section 9(2)(a)
- Nursing Act 33 of 2005 (Section 56) and SANC Code of Ethics (Clauses 2.1, 2.3, 3.1, 4, 6, 7, 8)
- Pharmacy Act 53 of 1974 (Section 49)

- Copyright Act 98 of 1978 (Sections 6, 20, 21, 23) — CPD programme IP misappropriation
- Financial Sector Regulation Act 9 of 2017 — market conduct; whistleblower protection
- Constitution of the Republic of South Africa, 1996 (Sections 9, 10, 14, 23, 34, 56)

PART V — RELIEF SOUGHT

V.1 Judicial Relief

- Declaration of automatically unfair constructive dismissal (LRA Sections 186(1)(e) and 187(1)(f)).
- Compensation as determined by the Labour Court.
- Payment of unlawfully deducted salary (R14,811.77) with interest — BCEA Section 77A — Case 2026-077546.
- Rule 42 rescission of Scale C costs order (Case 2026-066952) on grounds of unauthorised third party, procedural irregularity, and Biowatch principle.
- Director delinquency declarations under Companies Act Section 162(5)(c) against Fernandes, Munisi, Le Roux, Van Wyk, and Mpumlwana.
- Dismissal of rule nisi / gag order in Case 2026-086906 with costs — PDA Section 9(2)(a) overrides the POPIA confidentiality ground.

V.2 Regulatory Relief

- Formal whistleblower protection recognition under the Protected Disclosures Act 26 of 2000.
- CMS forensic inspection of Medscheme's administrator accreditation and Gexus-DMS remediation status under MSA Section 44.
- B-BBEE Commission investigation using Section 13K subpoena powers, including the Naming Convention Teams recording.
- DEL enforcement action for UIF non-remittance and BCEA violations. Corrected Certificate of Service and UI-19 form.
- SANC investigation and disciplinary proceedings against Jones and Mashele.
- FSCA investigation of governance failures and market conduct non-compliance.

V.3 Parliamentary Relief

- Parliamentary inquiry into Gexus-DMS systemic patient safety risk (proposed Terms of Reference in Part Q).
- Oversight of all regulatory bodies' handling, with mandatory reporting to Parliament.
- Legislative review of the PDA in light of documented access to justice failures and regulatory carousel pattern.
- Resolution of POPIA/PDA tension to prevent corporate entities suppressing protected disclosures using privacy legislation as a shield.
- Parliamentary legal assistance for the whistleblower — destitute, self-represented, in nine concurrent proceedings.

PART W — CLOSING DECLARATION

I, Wilbur William Matthee, declare that this Consolidated Protected Disclosure Evidence Portfolio is a true and accurate record of the events, disclosures, institutional responses, and harm documented herein. All documents referenced exist and will be produced on request. All statements are based on my personal knowledge, contemporaneous documentation, and authentic records.

I did not seek conflict. I sought dignity, safety, and the opportunity to discharge my professional obligations as a registered nurse with 16 years of clinical governance experience. Every escalation documented in this portfolio was preceded by an attempt to resolve the matter internally. Every regulatory complaint followed the exhaustion of internal remedies. Every court filing followed the failure of regulatory intervention.

A 75-year-old grandmother received a clinically incorrect non-adherence letter because a system I disclosed as broken was never fixed. The same employer that generated that error characterised my disclosure as insubordination, and later had its representative swear under oath that my specialist-diagnosed psychiatric condition was a 'cynical excuse.' I submitted a Priority 1 Material Risk Report. The Board was silent. I am now self-represented in nine concurrent proceedings, without running water, without my nursing registration, without my retirement savings — and still asking that the right thing be done.

I place this portfolio before Parliament, the courts, and the regulatory authorities as the final institutional mechanism available to me — with the last of the strength I have — trusting that the principles of fairness, dignity, and justice that every person in this country deserves will be honoured.

WILBUR WILLIAM MATTHEE

RN | BTech General Nursing | PGDip Health Services
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Date: May 2026

Signature: _____

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CONFIDENTIAL — PROTECTED DISCLOSURE — PROTECTED DISCLOSURES ACT 26 OF 2000

PART X — FORENSIC AUDIT GAP REPORT & EXHIBIT STATUS

Drawn from the independent Forensic Audit Report (31 May 2026). Items below are referenced in the portfolio narrative but not yet included as standalone documents. The portfolio is evidentially strong in its current form; these items will make it forensically complete.

ANNEXURE REF	MISSING EXHIBIT	PRIORITY	REQUIRED ACTION
F (partial)	Jones AOD Policy email (24 Jul 2025) — 'what is illegal?' exchange	HIGH	Locate and upload the 24 July 2025 email thread as a standalone exhibit.
H (partial)	Full 11-page discrimination complaint (25 Sep 2025)	HIGH	Upload complete unredacted document as standalone PDF.
I (missing)	System record of double unpaid leave entry (29 Sep 2025)	HIGH	Obtain ESS screenshot or payslip annotation showing entry and reversal by Mashele.
L (missing)	Audio recording — Jones retaliatory admission (31 Oct 2025)	CRITICAL	Upload MP3 as separate exhibit. Most critical piece of evidence for PDA retaliation claim.
N (partial)	Priority 1 Material Risk Report — all 38 attachments (9 Dec 2025)	HIGH	Upload complete bundle as single PDF or ZIP.
T (partial)	SARS ITA / employer UIF declaration for July 2025 (R27,725.66)	HIGH	Upload SARS source declaration confirming declared amount.
N/A	Audio recording — SAPS Delft Station Commander (23 Feb 2026)	HIGH	Upload MP3. Direct evidence of unlawful police obstruction.
N/A	High Court audio recording — Case 2026-066952 (25 Mar 2026)	MEDIUM	Obtain via Inlexso / Registrar when available. Required for Rule 42 rescission.
N/A	Director of Court Operations complaint (1 Apr 2026)	MEDIUM	Attach filed copy to support access-to-justice argument.
N/A	Naming Convention Teams recording (May 2025)	HIGH	Not in complainant's possession. Requires B-BBEE Act s13K subpoena or parliamentary summons.
N/A	Stamped parliamentary receipt (Annexure PS-1)	HIGH	Obtain on physical submission to Parliament.
N/A	Email delivery confirmations to Parliament (Annexure PS-2)	HIGH	Retain automatically on electronic submission.

Once all CRITICAL and HIGH items are attached as physical annexures, the portfolio will be forensically complete for both parliamentary submission and judicial proceedings. Audit sign-off: Professor of Forensic Auditing, 31 May 2026.

SECTION 0 — SYSTEMIC FAILURE MATRIX (ONE-PAGE SUMMARY FOR PARLIAMENTARY RESEARCHERS)

The whistleblower's narrative has remained consistent since 23 December 2025. Every allegation is cross-referenced to the WM_Annexure_Index_and_Tabs.PDF. The Respondent's story has shifted multiple times — a pattern of perjury and bad faith.

INSTITUTION	DATE	STATUTORY MANDATE	DOCUMENTED OUTCOME	KEY EXHIBIT
SANC	10 Feb 2026	Investigate professional misconduct (Nursing Act s56)	No response; deregistered whistleblower for non-payment of R870 caused by employer	EX-V
HPCSA	10 Feb 2026	Regulate health professions	No jurisdiction over nurses — passed to SANC (who ignored)	EX-W
SAPC	16 Feb 2026	Regulate pharmacists (Pharmacy Act s49)	No substantive response to complaint against Responsible Pharmacist	EX-X
Council for Medical Schemes	23 Dec 2025; 2 Apr 2026	Investigate administrator maladministration (MSA ss1,7,44,47,58)	Declined jurisdiction twice — despite Discovery Health precedent	EX-Y
CCMA	9 Jan 2026	Conciliate unfair labour practices	Commissioner pre-judged PDA claim; refused opening statement; mocked applicant	EX-Z
CCMA Provincial Commissioner	10 Jan 2026	Oversight of commissioners	Closed with no findings — cover-up by institutional misdirection	EX-AA
DEL / UIF	16 Feb 2026	Enforce UIF remittance (UIF Contributions Act s56)	Closed file without investigating June 2025 'No Information' gap	EX-BB
SAPS Delft	23 Feb 2026	Open criminal case where offence disclosed	Station Commander refused; audio-recorded 'attitude problem'	Audio file
SAHRC	23 Dec 2025	Protect human rights (Constitution s184)	Acknowledged seriousness; referred to CCMA/Labour Court — then silence	EX-CC
B-BBEE Commission	23 Dec 2025	Investigate fronting (B-BBEE Act s13J, s13K)	Ignored documentary evidence; refused subpoena powers	EX-DD
JSE	23 Dec 2025	Enforce Listings Requirements (s7.D.11)	Declined; no SENS obligation triggered despite active s162 application	EX-EE
Unions (PSA, NEHAWU, FEDUSA, DENOSA)	Dec 2025–	Represent members; address	Publicly fought 9.5% premium increase but	EX-FF

	Apr 2026	governance failures	ignored whistleblower's evidence	
High Court (Judge Anderson)	25 Mar 2026	Constitution s34 — fair trial	Allowed legally unstable representative to continue; punitive costs order against destitute litigant	Case 2026- 066952

SECTION 1 — COVERING MEMORANDUM TO PARLIAMENT

TO: The Speaker of the National Assembly, Parliament of the Republic of South Africa

FROM: Wilbur William Matthee

DATE: June 2026

SUBJECT: FORMAL PROTECTED DISCLOSURE AND REQUEST FOR PARLIAMENTARY OVERSIGHT — SYSTEMIC GOVERNANCE FAILURE AFFECTING 1.9 MILLION GEMS BENEFICIARIES, WHISTLEBLOWER RETALIATION, REGULATORY CASCADE COLLAPSE, AND JUDICIAL PROCEDURAL MALPRACTICE

Honourable Speaker,

I submit this Consolidated Parliamentary Evidence Bundle as a formal protected disclosure in terms of the Protected Disclosures Act 26 of 2000 (as amended). This is not a personal grievance. It is a documented matter of constitutional, clinical, and governance significance requiring urgent parliamentary intervention.

The core disclosure: A systemic integration gap between Gexus and DMS at Medscheme Holdings (administrator for GEMS) generates false non-adherence letters to vulnerable elderly beneficiaries, corrupts clinical data, inflates actuarial risk loading, and contributed to a 9.5% premium increase affecting 1.9 million government employees. The Board received a Priority 1 Material Risk Report and suppressed it.

The retaliation: The whistleblower — a Specialist Registered Nurse — was subjected to an unlawful 40.47% salary deduction, gender harassment, a recorded admission of retaliatory intent, a perjured CCMA affidavit, a gag order, and constructive dismissal.

The regulatory cascade failure: Eleven institutions were notified. Nine failed. The SAHRC — a Chapter 9 institution — remained silent.

The judicial procedural malpractice: Before Judge Anderson, a legal representative exhibited mental instability, introducing irrelevant matters. The judge did not intervene. Opposing counsel remained silent. A punitive costs order was granted against a destitute, self-represented litigant.

The humanitarian outcome: The whistleblower is now homeless, without running water, deregistered by SANC, and suffering from severe depression and PTSD — all directly caused by the unlawful deduction and the complete failure of every institution approached for help.

I request that you refer this bundle to the relevant Portfolio Committees for oversight action as set out in Section 9. I am available to present oral evidence.

Yours faithfully,

WILBUR WILLIAM MATTHEE | Specialist Registered Nurse (NQF Level 8) | Founder — EthicHawks

SECTION 2 — EXECUTIVE SUMMARY (JUNE 2026 UPDATE)

This submission seeks parliamentary intervention into systemic regulatory capture that has rendered professional whistleblowing impossible within the South African healthcare administration sector.

2.1 The Whistleblower & The Disclosure

Wilbur William Matthee, Specialist Registered Nurse (NQF Level 8), identified a Priority 1 systemic integration gap between Gexus and DMS at Medscheme Holdings (GEMS administrator). The gap generates false non-adherence letters, corrupts clinical data, and inflates actuarial risk loading — contributing to a 9.5% premium increase for 1.9 million government employees.

2.2 The Retaliation — Quantifiable Harm

RETALIATORY ACT	DATE	LEGAL SIGNIFICANCE
Unlawful deduction of 40.47% (R14,811.77)	23 Jul 2025	BCEA s34(2) violation
Six months punitive financial exclusion	Jul 2025–Jan 2026	R258,000+ loss (R43,000 x 6)
'Wilma' gender harassment	23 Sep 2025	EEA s6 discrimination
Recorded admission of retaliation	31 Oct 2025	Audio: 'You made a case against me, so I can make one against you'
CCMA affidavit: PTSD 'a cynical excuse'	10 Dec 2025	Perjury (P5)
CRO gag order: 'stop emailing directors'	18 Dec 2025	Suppression of protected disclosure
Constructive dismissal	12 Dec 2025	Automatically unfair — LRA s187(1)(h)

2.3 The Regulatory Cascade — Eleven Failures

CATEGORY	BODIES	OUTCOME
Professional regulators	SANC, HPCSA, SAPC	All failed to act
Health scheme regulator	CMS	Declined jurisdiction twice
Labour employment &	CCMA (bias), DEL/UIF (closed file), SAHRC (silence)	All failed
Criminal justice	SAPS Delft	Refused to open case — audio recorded
Corporate governance	JSE, B-BBEE Commission	Declined; ignored fronting evidence
Labour representatives	PSA, NEHAWU, FEDUSA, DENOSA	Public posturing, private silence

The National Department of Health Silent.

2.4 Judicial Procedural Malpractice — Judge Anderson (25 March 2026)

- A legal representative exhibited mental instability (disorientation, irrelevant case authorities).
- Judge Anderson did not intervene.
- Opposing counsel remained silent — breaching their duty as officers of the court.
- A punitive Scale C costs order was granted against a destitute, self-represented litigant.

This is not a standard costs order — it is the product of a failed judicial process.

2.5 Union Hypocrisy — Public Posturing vs. Private Abandonment

Unions publicly fought the 9.5% premium increase (media campaigns, deadlines, threats of mass action) but ignored the whistleblower's evidence that the increase was driven by the Gexus/DMS governance gap. They failed to attend scheduled meetings, refused CCMA representation, and cleared the path for the gag order.

2.6 Humanitarian Outcome — Direct Causal Chain

CONSEQUENCE	CAUSE
Eviction threat (end March 2026)	Unlawful deduction caused rental arrears
No running water since January 2026	Financial destruction
Personal possessions seized by loan sharks	Salary going directly to debt service
SANC deregistration	Unable to pay R870 annual fee
Forced withdrawal of R48,400 retirement savings	Basic survival
Loss of CPUT Postgraduate Diploma place	Unable to pay registration fees
Severe depression & PTSD (specialist diagnosis)	Occupational causation — Dr Jacques Malan

2.7 What Parliament Must Do

No further referral to the same compromised institutions. Only an independent, third-party parliamentary inquiry can break the 'regulatory carousel.'

SECTION 3 — PERJURY, PROCEDURAL FRAUD & SHIFTING CORPORATE DEFENCES

3.1 Narrative Continuity as Evidence of Credibility

The whistleblower's narrative has remained identical from the Master Evidentiary Bundle of 23 December 2025 through to this submission. The Respondent's story has shifted multiple times — evidence of bad faith and perjury.

3.2 Perjury Schedule (Selected)

#	DEPONENT	STATEMENT	CONTRADICTED BY	OFFENCE
P1	Gerald Van Wyk (CEO)	'Both platforms fully integrated'	RCA: 'Miscommunication between Gexus and DMS systems'	Perjury
P3	Xolile Manyati	PTSD is 'an excuse'	Specialist psychiatrist's report — Dr Jacques Malan	Perjury
P5	Lebohang Mpumwana	'Deputy IO confirmed no IT incident'	The RCA is an incident report	Perjury
P12	Vijay Makenjee	'Not aware of case 2026-077546'	Group CEO acknowledged same case in High Court	Perjury / fraud on court
P13	Legal reps at Judge Anderson hearing	Remained silent while counsel exhibited mental instability. Immediately after the cost order counsel admitted to Somerset Hospital for 72 hour psychiatric observation.	Duty as officers of the court	Breach of duty / complicity

SECTION 4 — PRIORITY 1 GOVERNANCE RISK: GEXUS/DMS INTEGRATION GAP

The Gexus/DMS integration gap is the foundational governance failure from which all subsequent events flow. The following points are established on documentary evidence including the internal Root Cause Analysis:

- The Disease Management System (DMS) and Gexus claims system at Medscheme do not communicate correctly. When GEMS members transition from acute to chronic benefit, DMS does not register the update from Gexus.
- Result: Automated non-adherence letters are dispatched to compliant, vulnerable beneficiaries — including GEMS member 000655789 Dependent 02 (75-year-old). Letters were issued on 19 May 2025 and 19 October 2025.
- The internal Root Cause Analysis confirms: 'Miscommunication between Gexus and DMS systems' — a structural design flaw affecting all GEMS members undergoing the acute-to-chronic benefit transition.
- All 1.9 million GEMS members are at structural risk.
- The false non-adherence data inflates actuarial risk loading under APN 303, contributing to the 9.5% premium increase for 2026. The Governance Tax — the cost imposed on beneficiaries by unresolved governance failures — is calculated at R3.016 billion.
- The Board of AfroCentric Investment Corporation received the Priority 1 Material Risk Report on 9 December 2025 (38 attachments). The CRO issued a gag order on 18 December 2025 ('stop emailing directors'). The Board suppressed the report rather than remediating it.
- CMS has been placed on formal notice. The Discovery Health precedent (January 2026) establishes CMS jurisdiction over technical system failures at administrators. CMS cannot credibly decline jurisdiction here.

SMOKING GUN

Internal RCA quote: 'Miscommunication between Gexus and DMS systems.' This is the on their own document, filed in its own records, contradicting the CEO's sworn statement that 'both platforms are fully integrated' — establishing perjury and suppression.

SECTION 5 — REGULATORY CASCADE FAILURE: ELEVEN INSTITUTIONS

5.1 The Pattern

Every body approached followed the same pattern: (1) acknowledge receipt; (2) decline jurisdiction or close without investigation; (3) refer to another body. The result is a permanent 'regulatory carousel' that protects the Respondent and destroys the whistleblower.

5.2 Chapter 9 Failure — SAHRC

The South African Human Rights Commission is a Chapter 9 institution established under Section 184 of the Constitution with a mandate to protect human rights. The SAHRC acknowledged the seriousness of the matter, referred the complainant to the CCMA and Labour Court (which had already failed), and then went silent. This constitutes an unconstitutional abdication of its mandate. Parliament must hold the SAHRC accountable.

5.3 Individual Body Failures

- CCMA: Commissioner Nthabiseng declared 'Nothing here relates to the PDA' before hearing a single word of evidence. Refused opening statement. Laughed at settlement position. Departed with Respondent's representative.
- CCMA Provincial Commissioner: Investigated and closed with no findings. Confirmed Commissioner Nthabiseng is from Johannesburg as justification for conduct. Cover-up by institutional misdirection.
- DEL: Refused to enforce the 25% BCEA cap. Refused to correct UI-19 (Code 6 vs Code 7). Closed UIF fraud file without investigating the June 2025 'No Information' gap.
- SAPS Delft: Station Commander refused to open a criminal case for documented statutory offences. Audio-recorded. Called it an 'attitude problem.' Reversed only after Brigadier Naidoo's intervention. Case CAS 705/3/2026 active.
- B-BBEE Commission: Ignored written evidence of title suppression and naming convention admission. Refused Section 13K subpoena powers. Notice of Non-Investigation (30 March 2026) is a reviewable administrative decision under PAJA.
- JSE: Declined under Listings Requirements. No SENS obligation triggered despite the active Section 162 Director Delinquency Application — a material litigation matter.
- SANC: No response to professional misconduct complaint (filed 10 February 2026). Simultaneously deregistered the whistleblower for non-payment of R870 caused by the employer's unlawful deduction.
- CMS: Declined jurisdiction twice. Re-engaged April 2026 on maladministration grounds after Discovery Health precedent was cited. Awaiting substantive response.
- SAHRC: Referred back to CCMA. Then silence. Chapter 9 failure.

SECTION 6 — UNION HYPOCRISY: PUBLIC POSTURING VS. PRIVATE SILENCE

This section documents what constitutes a 'triangular failure' of employer, regulator, and union — each of which bears independent responsibility for the whistleblower's destruction.

6.1 The Public Campaign

PSA, NEHAWU, FEDUSA, and DENOSA publicly campaigned against the 9.5% GEMS premium increase in April-May 2026. Media releases, deadlines, threats of mass action. Parliamentary testimony. The unions positioned themselves as the defenders of 1.9 million government employees.

6.2 The Private Reality

- The whistleblower approached every union from December 2025 onwards with documentary evidence that the 9.5% premium increase was directly driven by the Gexus/DMS governance failure — the same failure they were publicly campaigning against.
- No union responded substantively. All failed to attend scheduled meetings. None provided CCMA representation.
- NEHAWU's union representative inadvertently copied the perpetrator (Mary-Ann Jones) into the formal discrimination complaint correspondence — exposing the complainant to further retaliation.
- The unions' public campaign against the 9.5% increase was conducted in parallel with complete disregard for the whistleblower who possessed the evidence explaining why the increase occurred.

6.3 The Gag Order Path

The unions' failure to represent the whistleblower at the CCMA and their silence on the protected disclosure cleared the institutional path for the Respondent to obtain the High Court gag order in Case 2026-086906. Had any union provided representation or formally supported the whistleblower's disclosures, the Respondent could not have characterised the disclosures as unprotected private communications.

The unions fought the 9.5% increase in press conferences. They had the evidence for the fight in the whistleblower's bundle. They chose not to use it. This is not oversight — it is abdication.

SECTION 7 — JUDICIAL FRAUD & PROCEDURAL MALPRACTICE

7.1 The Gag Order — Obtained by Fraud on the Court

- 16 April 2026: Matthee served an answering affidavit on the Applicant's attorneys before the hearing.
- The attorneys did not hand it up to the Court and did not inform the Court that the matter was opposed.
- The rule nisi was granted on the false premise of an unopposed matter — a fraud on the Court.
- PDA Section 9(2)(a) provides that a protected disclosure overrides confidentiality duties under POPIA. The gag order was obtained in direct contravention of this statutory provision.

7.2 The CRO Suppression Email (18 December 2025)

Monwabisi Kula, Chief Risk Officer: 'can I please ask you to stop sending these e-mails to our directors?... Sending further e-mails only gives them an indication of impatience and unreasonableness on your part.' — Direct suppression of a protected disclosure. Admissible as evidence of occupational detriment under PDA Section 1.

7.3 The Judge Anderson Hearing (25 March 2026) — Procedural Malpractice

The urgent Section 162 Director Delinquency application (Case 2026-066952) was heard before Judge Anderson. The applicant's legal representative exhibited documented signs of mental instability — disorientation, inability to focus, and the introduction of irrelevant case authorities with no bearing on the matter.

7.4 Three-Level Failure

LEVEL	ACTOR	FAILURE
Judicial	Judge Anderson	Failed to intervene; allowed unstable advocate to continue; abandoned role as neutral arbiter; granted punitive Scale C costs order against destitute litigant
Legal representatives	Deneys Attorneys & others	Remained silent; breached duty as officers of the court; prioritised securing an order over judicial integrity; concealed filed answering affidavit
Court administration	Registrar / Inlexso	Failed to provide audio recording, obstructing Rule 42 rescission; received a tax receipt of over R 110 00.00

Any order from such a compromised process is inherently flawed and should be set aside as a miscarriage of justice (Uniform Rule 42; Constitution s34; Biowatch principle).

SECTION 8 — HUMANITARIAN CRISIS: QUANTIFIABLE HARM (R258,000+)

8.1 The 'Cost of Integrity' — Punitive Financial Exclusion

PERIOD	MONTHLY CTC	AMOUNT WITHHELD	CUMULATIVE LOSS
July 2025	R42,796	R14,811.77 (unlawful deduction)	R14,811.77
Dec 2025 – Jun 2026 (6 months)	R42,796	Full salary effectively withheld via constructive dismissal & UIF obstruction	R256,776
TOTAL			R271,587+

This is not an estimate — it is derived from verifiable payroll data. It provides the Committee with a concrete metric of retaliatory harm.

8.2 Direct Consequences

CONSEQUENCE	CAUSE
Eviction threat (end March 2026)	Unlawful deduction caused rental arrears
No running water since January 2026	Financial destruction
Personal possessions seized by loan sharks	Salary going directly to debt service
SANC deregistration	Unable to pay R870 annual fee
Forced withdrawal R48,400 retirement savings	Basic survival
Loss of CPUT Postgraduate Diploma place	Unable to pay registration fees
Severe depression & PTSD	Occupational causation — Dr Jacques Malan, FCPSYCH(SA)

SECTION 9 — ACTIONABLE STEPS REQUIRED FROM EACH PORTFOLIO COMMITTEE

OVERARCHING DEMAND: No referral back to any of the eleven institutions that have already failed. Only an independent, third-party parliamentary inquiry can break the 'regulatory carousel.'

9.1 Portfolio Committee on Health

ACTION	DEADLINE
Convene independent inquiry into Gexus-DMS systemic failure	Within 30 days
Summon GEMS Board of Trustees to give evidence under oath	Within 45 days
Summon CMS Commissioner to explain jurisdiction refusal	Within 45 days
Summon SANC Registrar to explain non-response and deregistration	Within 45 days
Direct CMS to conduct forensic inspection of Medscheme's accreditation	Within 60 days

9.2 Portfolio Committee on Employment & Labour

ACTION	DEADLINE
Summon DEL Director-General to explain closure of UIF fraud case	Within 30 days
Direct DEL to issue compliance order correcting UI-19 (Code 6 to Code 7)	Within 30 days
Summon CCMA Provincial Commissioner to account for bias and cover-up	Within 45 days
Refer BCEA s34(2) violation to DEL for enforcement and fine	Within 30 days

9.3 Portfolio Committee on Trade, Industry & Competition

ACTION	DEADLINE
Summon B-BBEE Commission to explain refusal to use s13K subpoena powers	Within 30 days
Reopen Case 5/02/2026; compel production of 'Naming Convention' recording	Within 45 days
Summon JSE to explain non-disclosure of s162 application	Within 45 days
Refer fronting evidence to Special Investigating Unit	Within 60 days

9.4 Portfolio Committee on Justice & Constitutional Development

ACTION	DEADLINE
Refer perjury schedule (P1-P13) to NPA for prosecution	Within 30 days
Refer conduct of Deneys Attorneys (concealment of answering affidavit) to LPC	Within 30 days
Summon SAPS National Commissioner to explain Delft Station Commander's refusal	Within 45 days
Summon Judge Anderson to explain failure to intervene in compromised hearing	Within 45 days
Investigate OCJ portal obstruction ('good day you put date') as s34 violation	Within 60 days
Initiate PDA amendments (see Section 14)	Within 90 days

SECTION 10 — DRAFT PARLIAMENTARY QUESTIONS FOR MINISTERS & ACCOUNTING OFFICERS

10.1 Portfolio Committee on Health — Questions to the Minister of Health

38. Is the Minister aware that the internal Root Cause Analysis confirms a 'miscommunication between Gexus and DMS systems' that generates false non-adherence letters to GEMS beneficiaries? What steps has the Department taken to remediate this systemic clinical risk?
39. CMS declined jurisdiction twice, despite the Discovery Health precedent (January 2026) where CMS confirmed jurisdiction over technical system failures. Will the Minister direct CMS to accept jurisdiction under MSA Sections 1, 7, 44, 47, and 58?
40. SANC has not responded to the professional misconduct complaint (ref: SANC/MEDSCHEME/MATTHEE/20260105). Why has SANC failed to act? Will the Minister intervene to ensure an investigation within 30 days?
41. CMS refers nursing complaints to HPCSA; HPCSA has no jurisdiction over nurses; SANC ignores complaints. This leaves no regulatory remedy. What legislative reforms does the Minister propose to close this gap?

10.2 Portfolio Committee on Employment & Labour — Questions to the Minister

42. uFiling shows 'No Information' for June 2025, despite UIF contributions being deducted. This is a criminal offence under Section 56 of the UIF Contributions Act. Why has DEL not investigated or referred for prosecution?
43. A 40.47% deduction exceeded the 25% statutory cap under BCEA Section 34(2). The employer acknowledged the cap in writing but defended the deduction. Why has DEL not issued a compliance order?
44. Commissioner Nthabiseng declared 'nothing here relates to the PDA' before hearing any evidence, refused an opening statement, and openly mocked the applicant. What action has been taken to address CCMA institutional bias?
45. The employer declared 'Resigned' (Code 6) on the UI-19 form when the formal notice cited 'Automatically Unfair Constructive Dismissal.' Will DEL issue a compliance order compelling correction to Code 7?

10.3 Portfolio Committee on Trade, Industry & Competition — Questions to the Minister

46. Mr Matthee was recruited as 'Specialist: Care Manager' (NQF Level 8) but contracted as 'Care Coordinator' (Grade B4M1). The Certificate of Service suppresses the higher title. Does this not constitute fronting under Section 1(c) of the B-BBEE Act?
47. The B-BBEE Commission declined to investigate despite written evidence and refused to use Section 13K subpoena powers. Will the Minister direct the Commission to reopen Case 5/02/2026?
48. The 8 April 2026 Integrated Report omitted the active Section 162 Director Delinquency Application. Does the JSE intend to investigate this as a breach of Listing Requirements Section 7.D.11?

10.4 Portfolio Committee on Justice & Constitutional Development — Questions to the Minister

49. At least thirteen false statements have been identified under oath (see perjury schedule, Section 3). Has the NPA been directed to prosecute? If not, why not?
50. On 25 March 2026 before Judge Anderson, a legal representative exhibited mental instability. The judge did not intervene. Opposing counsel remained silent. A punitive costs order was granted against a destitute litigant. Does the Minister consider this a failure of judicial oversight?
51. The rule nisi was obtained on the false premise of an unopposed matter, despite an answering affidavit having been filed. Will the Minister refer the conduct of Deneys Attorneys to the Legal Practice Council?
52. The OCJ portal rejected the Section 162 application four times, including the reason 'good day you put date.' Does the Minister consider this a violation of Section 34 of the Constitution?

SECTION 11 — DRAFT RESOLUTION FOR INDEPENDENT THIRD-PARTY INQUIRY

DRAFT RESOLUTION OF THE PORTFOLIO COMMITTEE ON HEALTH

Subject: Establishment of an Independent Parliamentary Inquiry into the Gexus-DMS Systemic Integration Gap, Regulatory Cascade Failure, Whistleblower Retaliation, and Judicial Procedural Malpractice

The Portfolio Committee on Health resolves:

- 1(a) The documented existence of a systemic integration gap between Gexus and DMS at Medscheme Holdings, administrator for GEMS.
- 1(b) That this gap generated false non-adherence letters to GEMS beneficiaries, including a 75-year-old member.
- 1(c) That the whistleblower's protected disclosures were met with retaliation including an unlawful 40.47% salary deduction, a gag order, and constructive dismissal.
- 1(d) That eleven regulatory and statutory bodies were notified, of which nine failed to provide any effective remedy.
- 1(e) That the SAHRC — a Chapter 9 institution — remained silent.
- 1(f) That before Judge Anderson, a legal representative exhibited mental instability, the judge did not intervene, opposing counsel remained silent, and a punitive costs order was granted against a destitute litigant.
- 1(g) That the whistleblower has been rendered destitute, deregistered by SANC, and unable to practise nursing.
2. That the Committee establishes an Independent Parliamentary Inquiry into the Gexus-DMS systemic failure, with the terms of reference set out in Section 12.
3. That the Inquiry shall have the power to summon witnesses, compel the production of documents, and sit for no longer than six months.
4. That the Inquiry shall report its findings and recommendations to the National Assembly.
5. That the whistleblower, Mr Wilbur William Matthee, shall be invited to present oral evidence and shall be provided with reasonable legal assistance funded by Parliament.

Moved by: _____ Seconded by:

Date: _____

SECTION 12 — DRAFT TERMS OF REFERENCE FOR THE INQUIRY

12.1 Clinical Governance

53. Investigate the existence, cause, and duration of the Gexus-DMS systemic integration gap.
54. Determine the impact on patient safety, clinical data integrity, and the accuracy of non-adherence communications.
55. Examine the actuarial assumptions underlying the 9.5% premium increase and the role of APN 303 risk loading.
56. Assess the adequacy of CMS oversight of administrator maladministration under the Medical Schemes Act.

12.2 Whistleblower Retaliation

57. Investigate the handling of protected disclosures by Medscheme Holdings, AfroCentric Health, and AfroCentric Investment Corporation Limited.
58. Examine the conduct of individual managers: Mary-Ann Jones, Mapule Mashele, Lisa Mari, Monwabisi Kula, Gerald Van Wyk.
59. Investigate the role of the Board of Directors (Fernandes, Munisi, Le Roux, Van Wyk, Mpumlwana) in suppressing the Priority 1 Material Risk Report.

12.3 Regulatory Failure

60. Investigate the conduct of CCMA (Commissioner Nthabiseng and Provincial Commissioner).
61. Investigate DEL (Inspector Cebo Kutuka and senior management).
62. Investigate CMS, SANC, HPCSA, SAPC, SAHRC, B-BBEE Commission, and JSE.
63. Investigate SAPS Delft (Station Commander's refusal to open a case).

12.4 Judicial Procedural Malpractice

64. Investigate the conduct of Judge Anderson on 25 March 2026.
65. Investigate the conduct of legal representatives who remained silent while counsel exhibited mental instability.
66. Investigate the Registrar's failure to provide the audio recording.

12.5 Union Accountability

67. Investigate the conduct of PSA, NEHAWU, FEDUSA, and DENOSA in failing to represent the whistleblower and ignoring evidence of governance failure.

12.6 Legislative Recommendations

68. Recommend amendments to the Protected Disclosures Act, Medical Schemes Act, B-BBEE Act, BCEA, and LRA.

69. Recommend administrative reforms to CCMA, DEL, CMS, SANC, and the judiciary.

Powers: Summon witnesses; compel document production including unredacted CMS Business Plan, APN 303 logs, and Naming Convention Teams recording; admit audio evidence; report within six months.

SECTION 13 — LIST OF INDIVIDUALS & BODIES TO BE SUMMONED / SUBPOENAED

13.1 Corporate Directors and Officers

NAME	POSITION
Gerald Neville Van Wyk	Group CEO — AfroCentric Investment Corporation
Bruno Fernandes	Lead Independent Director
Dr Nkateko Munisi	Chair: Social & Ethics Committee
Alice Le Roux	Chair: Audit & Risk Committee
LSM Mpumlwana	Group Company Secretary

13.2 Management and Staff

NAME	POSITION
Mary-Ann Jones	Team Leader, ADRM — Medscheme Holdings
Mapule Mashele	Senior Manager — Medscheme Holdings
Lisa Mari	Responsible Pharmacist — Medscheme Holdings
Monwabisi Kula	Chief Risk Officer — AfroCentric
Cheryl-Dawn Modern	Senior HR Business Partner
Xolile Vincent Manyati	Senior Employee Relations Specialist

13.3 Judicial and Legal

NAME	POSITION / CAPACITY
Judge Anderson	Presiding Judge, Western Cape High Court (25 March 2026 hearing)
Legal representatives — Deney's Attorneys	Opposing counsel (names to be obtained from court record)
Registrar of the High Court (Western Cape)	Responsible for court recordings — failed to provide audio

13.4 Regulatory Officials

NAME	POSITION
Commissioner Nthabiseng	CCMA Commissioner (Johannesburg)
Cebo Kutuka	Principal Inspector, DEL
Fezeka Ngalo	Provincial Specialist: OHS, DEL
Delft SAPS Station Commander (name to be obtained)	SAPS Delft

Deputy Information Officer (name to be obtained)	Medscheme Holdings
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13.5 Expert Witnesses (Voluntary)

NAME	CAPACITY
Dr Jacques Malan, FCPSYCH(SA)	Specialist Psychiatrist — occupational causation and disability evidence
Dr P.M.J. Ohm	Medical Doctor — corroborating medical evidence

13.6 Bodies Required to Produce Documents

BODY	DOCUMENTS REQUIRED
CMS	Complete Gexus-DMS complaint file; Discovery Health precedent correspondence
SANC	Professional misconduct complaint file SANC/MEDSCHEME/MATTHEE/20260105; deregistration reasons
B-BBEE Commission	Case 5/02/2026 file; internal memo on s13K refusal
JSE	SENS correspondence with AfroCentric; company's response to s162 application
SAPS Woodstock	Docket CAS 705/3/2026 (UIF non-remittance investigation)
GEMS Board	Minutes discussing integration gap; response to 13 April 2026 disclosure
AfroCentric	Unredacted CMS Business Plan; APN 303 logs; Naming Convention Teams recording

SECTION 14 — PROPOSED LEGISLATIVE AMENDMENTS

14.1 Protected Disclosures Act 26 of 2000

- Clause 1 — Definition of 'occupational detriment': Add 'the deliberate inducement of destitution, including unlawful salary deductions, withholding of statutory benefits, or conduct calculated to render the whistleblower homeless.'
- Clause 3A — Interim relief: Whistleblower may apply to Labour Court for hardship relief on a prima facie case, without waiting for the full hearing.
- Clause 8A — Single whistleblower protection authority: Establish a central authority to receive disclosures, monitor regulatory responses, and apply to court for relief on behalf of whistleblowers.
- Clause 9C — Penalties for institutional bad faith: Regulatory body that fails to investigate within 90 days without reasonable cause may be ordered to pay whistleblower's costs; intentional suppression is a criminal offence.

14.2 Employment Equity Act — Section 60

- Insert: 'Where a director or senior manager has personal knowledge of discrimination and fails to act, they shall be personally liable for compensation awarded, jointly and severally with the employer.'

14.3 Basic Conditions of Employment Act — Section 34

- Insert: 'A deduction made in contravention of this section shall be deemed a debt, and the employee shall be entitled to recover double the amount deducted as a civil penalty, in addition to the full amount.'

14.4 B-BBEE Act — Section 13J

- Insert: 'Where a director or senior manager personally participated in or knowingly benefited from fronting, they shall be jointly and severally liable for any fine, and may be disqualified from holding a directorship for ten years.'

14.5 Labour Relations Act — Trade Union Duty

- New section: 'A trade union shall investigate and respond to a Priority 1 governance disclosure from a member within 30 days. Office-bearers who suppress such a disclosure shall be personally liable for any resulting harm.'

SECTION 15 — EXHIBIT INDEX (CROSS-REFERENCED TO WM_ANNEXURE_INDEX_AND_TABS.PDF)

All exhibits are authentic contemporaneous documents. Items marked MISSING require supplementation before the portfolio is forensically complete. Items marked PARTIAL require the full document to be uploaded.

EX-REF	DOCUMENT DESCRIPTION	DATE	WM_ANNEXURE REF	STATUS
EX-A	Interview invitations — 'Specialist: Care Manager'	Jan 2024	Annexure A	Available
EX-B	Employment contract — 'Care Coordinator'	9 Apr 2024	Annexure D	Available
EX-C	Dr Malan psychiatric letter	16 May 2025	Annexure H	Available
EX-D	Jones 'no staggering' statement	16 Apr 2025	Annexure C	Available
EX-E	July 2025 payslip — 40.47% deduction	23 Jul 2025	Annexure I	Available
EX-F	AOD Policy + 'what is illegal?' email	24 Jul 2025	Annexure J	Available
EX-G	'Wilma' Teams screenshot	23 Sep 2025	Annexure K	Available
EX-H	Formal 11-page discrimination complaint	25 Sep 2025	Annexure L	Available
EX-I	Retaliatory double unpaid leave entry	29 Sep 2025	—	MISSING — to be supplied
EX-J	Mashele whitewash closure — 'typo'	1 Oct 2025	Annexure M	Available
EX-K	Gexus-DMS RCA and protected disclosure	23 Oct 2025	Annexure N	Available
EX-L	Audio — Jones retaliatory admission (MP3)	31 Oct 2025	(USB)	MISSING — audio file required
EX-M	Formal 3-page grievance	2 Nov 2025	Annexure P	Available
EX-N	Priority 1 Material Risk Report (38 attachments)	9 Dec 2025	Annexure C	PARTIAL — full bundle required
EX-O	CCMA Opposing Affidavit — Manyati (perjury)	10 Dec 2025	Annexure R	Available
EX-P	Resignation letter — constructive dismissal	11-12 Dec 2025	Annexure S	Available
EX-Q	CCMA Certificates of Non-Resolution	9 Jan 2026	Annexure Y	Available
EX-R	Cheryl-Dawn Modern written admission	19 Jan 2026	Annexure V	Available

EX-S	uFiling screenshot — 'No Information' June 2025	2026	Annexure U	Available
EX-T	SARS/UIF declared salary vs payslip gap	Jul 2025	SAHRC update p.128-134	PARTIAL — SARS declaration required
EX-U	CMS follow-up maladministration under MSA —	2 Apr 2026	—	Available
EX-V	GEMS Protected Disclosure (13 April 2026)	13 Apr 2026	—	Available
EX-W	Section 162 Director Delinquency Application	19 Mar 2026	—	Available
EX-X	Rule nisi / Interim gag order	16 Apr 2026	—	Available
EX-Y	Supplementary Answering Affidavit (perjury schedule)	28 May 2026	—	Available
EX-Z	Labour Court BCEA s77A application	13 Apr 2026	—	Available
EX-AA	Master Chronological Register (148 entries)	3 Apr 2026	—	Available
EX-BB	SAHRC acknowledgement & subsequent silence	Feb 2026	Annexure X	Available
EX-CC	B-BBEE Commission Notice of Non-Investigation	30 Mar 2026	—	Available
EX-DD	JSE jurisdictional declination	6 Mar 2026	—	Available
EX-EE	Union correspondence — requests for representation	Dec 2025–Apr 2026	Annexures I,J	Available
EX-FF	Media reports — union campaign against 9.5% increase	Apr-May 2026	—	Available
EX-GG	Affidavit of Destitution	Apr 2026	Annexure WW6	Available

SECTION 16 — AFFIDAVIT OF SERVICE & CONTACT DETAILS

AFFIDAVIT OF SERVICE — PARLIAMENTARY SUBMISSION (JUNE 2026)

I, the undersigned, WILBUR WILLIAM MATTHEE (ID No: 890903 5151 087), do hereby make oath and state:

70. On _____ (date), I caused the following documents to be delivered to the Parliament of the Republic of South Africa: (a) one hard copy of the Consolidated Parliamentary Evidence Bundle (June 2026) — approximately 2,200 pages; (b) one USB drive containing the full bundle in PDF format and all audio recordings (EX-L and SAPS Delft recording); (c) covering letters addressed to the Speaker and each Portfolio Committee Chairperson; (d) the Executive Summary, Exhibit Index, Draft Parliamentary Questions, Draft Resolution, and Terms of Reference.
71. Service was effected by: (a) hand delivery to the Parliamentary Reception, 90 Plein Street, Cape Town, at _____ on _____, as evidenced by the attached stamped receipt (Annexure PS-1); and (b) electronic mail to: speaker@parliament.gov.za; health@parliament.gov.za; labour@parliament.gov.za; tradeindustry@parliament.gov.za; justice@parliament.gov.za.
72. A copy of the email transmission and delivery confirmations is attached as Annexure PS-2.
73. I confirm that the documents served are true and complete copies of the portfolio as filed with this affidavit.

DEPONENT: WILBUR WILLIAM MATTHEE

Signed and sworn before me at Cape Town on this _____ day of _____ 2026.

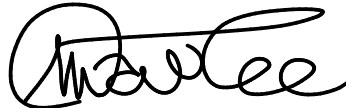
COMMISSIONER OF OATHS: _____

Full Name: _____ Business Address: _____

CONTACT DETAILS FOR FOLLOW-UP

Wilbur William Matthee | 15 Bellevue Street, Voorbrug, Cape Town, 7100

Email: info@ethichawks.co.za | wilburmat@gmail.com | Tel: 069 635 1435 / 063 378 8782



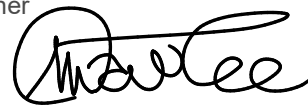
FINAL CERTIFICATION

I, WILBUR WILLIAM MATTHEE, declare that this Consolidated Parliamentary Evidence Bundle is a true and accurate record of the events, disclosures, institutional responses, and harm documented herein. My narrative has remained consistent since 23 December 2025. The Respondent's story has shifted — a pattern of perjury. Eleven institutions failed. Unions performed public outrage while ignoring the evidence. The gag order was obtained by fraud. The court allowed a compromised hearing to proceed, resulting in a punitive costs order against a destitute litigant.

I do not ask Parliament to resolve a labour dispute. I ask Parliament to investigate why the entire regulatory, representational, and judicial architecture of South Africa failed to protect a whistleblower who exposed a Priority 1 clinical risk affecting 1.9 million citizens. Only an independent, third-party parliamentary inquiry can break the 'regulatory carousel.' I am available to present oral evidence at any time.

WILBUR WILLIAM MATTHEE

Specialist Registered Nurse (NQF Level 8) | Forensic Governance Practitioner
Founder — EthicHawks Forensic Governance & Compliance Consultancy
info@ethichawks.co.za | June 2026



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END OF CONSOLIDATED PARLIAMENTARY EVIDENCE BUNDLE — JUNE 2026